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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:06-cv-01142-WDM-MJW

Palgut v. Colorado Springs, City of
Assigned to: Judge Walker D. Miller
Referred to: Magistrate Judge Michael J. Watanabe
Cause: 42:2000e Job Discrimination (Employment)

Date Filed: 06/15/2006
Date Terminated: 05/04/2010
Jury Demand: Both
Nature of Suit: 442 Civil Rights: Jobs
Jurisdiction: Federal Question

Plaintiff**Karyn S. Palgut**

represented by **Craig M. Cornish**
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Date Filed	#	Docket Text
06/15/2006	<u>1</u>	COMPLAINT against Colorado Springs, City of (Filing fee \$ 350, Receipt Number 269028) Summons Issued, filed by Karyn S. Palgut. (Attachments: # <u>1</u> Civil Cover Sheet # <u>2</u> Receipt)(gms,) (Entered: 06/15/2006)
06/19/2006	<u>2</u>	ORDER REFERRING CASE to Magistrate Judge Michael J. Watanabe by Judge Miller. (dln,) (Entered: 06/19/2006)
06/21/2006	<u>3</u>	ORDER setting Scheduling/Planning Conference set for 8/16/2006 09:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Signed by Magistrate Judge Michael J. Watanabe on 6/21/06. (dln,) (Entered: 06/21/2006)
06/21/2006	<u>4</u>	AFFIDAVIT/RETURN of Service of <i>Tad C. Howard</i> served upon City of Colorado Springs on June 20, 2006, filed by Plaintiff Karyn S. Palgut (Cornish, Craig) (Entered: 06/21/2006)
06/22/2006	5	Docket Annotation re: <u>4</u> AFFIDAVIT/RETURN of Service filed in error - to be refiled by Counsel as a Summons Returned Executed. Text only entry - no document attached. (dln,) (Entered: 06/22/2006)
06/22/2006	<u>6</u>	SUMMONS Returned Executed by Karyn S. Palgut. Colorado Springs, City of served on 6/20/2006, answer due 7/10/2006. (Cornish, Craig) (Entered: 06/22/2006)
07/10/2006	<u>7</u>	ANSWER to Complaint <i>and Affirmative Defenses and Jury Demand</i> by Colorado Springs, City of.(Miskel, Lori) (Modified on 7/11/2006 to add jury demand) (dln,). (Entered: 07/10/2006)
07/11/2006	8	Docket Annotation re: <u>7</u> ANSWER to Complaint and Affirmative Defenses and Jury Demand. [Entry modified to add Jury Demand]. Text only entry - no document attached. (dln,) (Entered: 07/11/2006)
08/09/2006	<u>9</u>	Stipulated MOTION for Hearing/Conference re <u>3</u> Order, Set/Reset Hearings <i>Reschedule Scheduling Conference</i> by Plaintiff and Defendant. (Attachments: # <u>1</u> Proposed Order (PDF Only))(Cornish, Craig) (Modified on 8/10/2006 to add filer) (dln,). (Entered: 08/09/2006)
08/09/2006	10	MEMORANDUM referring to Magistrate Judge Watanabe : <u>9</u> Stipulated MOTION for Hearing/Conference re <u>3</u> Order, Set/Reset Hearings <i>Reschedule Scheduling Conference</i> filed by Karyn S. Palgut, by Judge Walker D. Miller on 8/9/06. (Text Only Entry - No Document Attached)(wdmsec,) (Entered: 08/09/2006)
08/10/2006	11	Docket Annotation re: <u>9</u> Stipulated MOTION for Hearing/Conference re <u>3</u> Order, Set/Reset Hearings <i>Reschedule Scheduling Conference</i> . [Entry modified to add filer]. Text only entry - no document attached. (dln,) (Entered: 08/10/2006)
08/10/2006	<u>12</u>	MINUTE ORDER granting <u>9</u> Stipulated MOTION for Hearing/Conference re <u>3</u> <i>Reschedule Scheduling Conference</i> . Scheduling Conference RESET to 9/15/06 at 8:00

		a.m., Courtroom A-502 by Magistrate Judge Michael J. Watanabe on 8/10/06. (dln,) (Entered: 08/11/2006)
09/06/2006	13	Joint MOTION for Hearing/Conference to <i>Reschedule Scheduling Conference</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Modified on 9/7/2006 to remove linkage) (dln,). (Entered: 09/06/2006)
09/07/2006	14	MEMORANDUM referring to Magistrate Judge Watanabe : 13 Joint MOTION for Hearing/Conference to Reschedule Scheduling Conference by Plaintiff (Text Only Entry - No Document Attached) by Judge Walker D. Miller on 9/7/06. (dln,) (Entered: 09/07/2006)
09/12/2006	15	MINUTE ORDER granting 13 Joint MOTION for Hearing/Conference to Reschedule Scheduling Conference by Plaintiff. Rule 16 Conference RESET to 10/17/06 at 8:30 a.m. by Magistrate Judge Michael J. Watanabe on 9/12/06.(dln,) (Entered: 09/12/2006)
10/12/2006	16	Proposed Scheduling Order by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A - Stipulated Protective Order)(Miskel, Lori) (Entered: 10/12/2006)
10/12/2006	17	Proposed Scheduling Order by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A - Stipulated Protective Order)(Miskel, Lori) (Entered: 10/12/2006)
10/13/2006	18	Proposed Scheduling Order by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 10/13/2006)
10/13/2006	19	Proposed Pretrial Order <i>Plaintiff's Proposed Electronic Discovery Plan and Order to Preserve Evidence</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 10/13/2006)
10/14/2006	20	Proposed Pretrial Order <i>Proposed Confidentiality Order</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 10/14/2006)
10/15/2006	21	Unopposed MOTION to Amend/Correct/Modify 1 Complaint and <i>File First Amended Complaint</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Proposed Document Plaintiff's First Amended Complaint)(Cornish, Craig) (Entered: 10/15/2006)
10/16/2006	22	MEMORANDUM regarding 21 Unopposed MOTION to Amend/Correct/Modify 1 Complaint and <i>File First Amended Complaint</i> by Plaintiff. Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 10/16/06. (Text Only Entry - No Document Attached)(dln,) (Entered: 10/16/2006)
10/16/2006	23	Docket Annotation re: 20 Proposed Pretrial Order Proposed Confidentiality Order by Plaintiff. [Document is Plaintiff's Proposed Confidentiality and Protective Order - to be refiled by Counsel with appropriate Motion and attachments]. Text only entry - no document attached. (dln,) (Entered: 10/16/2006)
10/17/2006	24	Minute Entry/Minute Order for proceedings held before Magistrate Judge Michael J. Watanabe : Scheduling Conference held on 10/17/2006. Today's scheduling conference is VACATED. The order to show cause is VACATED. Scheduling Conference reset for 10/20/2006 08:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. (Court Reporter FTR - S. Moore.) (mjwcd,) (Entered: 10/17/2006)
10/17/2006	25	Proposed Scheduling Order (<i>Joint</i>) by Plaintiff and Defendant. (Cornish, Craig) (Modified on 10/18/2006 to add filer) (dln,). (Entered: 10/17/2006)
10/17/2006	26	Proposed Pretrial Order <i>Joint Confidentiality and Protective Order</i> by Plaintiff and Defendant. (Cornish, Craig) (Modified on 10/18/2006 to add filer) (dln,). (Entered: 10/17/2006)
10/18/2006	27	Docket Annotation re: 25 Proposed Scheduling Order (Joint) and 26 Proposed Pretrial Order Joint Confidentiality and Protective Order. [Entries modified to add Defendant as a

		filer]. Text only entry - no document attached. (dln,) (Entered: 10/18/2006)
10/19/2006	28	MINUTE ORDER granting 21 Unopposed MOTION to Amend/Correct/Modify 1 Complaint and File First Amended Complaint by Plaintiff and Plaintiff shall forthwith file her Amended Complaint with the Court. ORDERED the Joint confidentiality and Protective Order [#23] is approved as amended by Magistrate Judge Michael J. Watanabe on 10/19/06.(dln,) (Entered: 10/19/2006)
10/19/2006	29	JOINT CONFIDENTIALITY AND PROTECTIVE ORDER. Signed by Magistrate Judge Michael J. Watanabe on 10/19/06. (dln,) (Entered: 10/19/2006)
10/19/2006	30	Minute Entry for proceedings held before Judge Michael J. Watanabe : Scheduling Conference held on 10/19/2006. Discovery due by 4/30/2007,Dispositive Motions due by 5/30/2007, Settlement Conference set for 12/19/2006 01:30 PM before Magistrate Judge Michael J. Watanabe,Proposed Pretrial Order due by 8/27/2007,Final Pretrial Conference set for 8/30/2007 09:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. (Court Reporter FTR -Shelley Moore.) (gms,) (Entered: 10/20/2006)
10/20/2006	31	SCHEDULING ORDER: Signed by Magistrate Judge Michael J. Watanabe on 10/20/06. (gms,) (Entered: 10/20/2006)
10/20/2006	32	AMENDED COMPLAINT (<i>First Amended Complaint</i>) and Jury Demand against Colorado Springs, City of, filed by Karyn S. Palgut.(Cornish, Craig) (Modified on 10/23/2006 to add Jury Demand) (dln,). (Entered: 10/20/2006)
10/23/2006	33	Docket Annotation re: 32 AMENDED COMPLAINT (First Amended Complaint) and Jury Demand. [Entry modified to add Jury Demand]. Text only entry - no document attached. (dln,) (Entered: 10/23/2006)
10/24/2006	34	MOTION for Order to <i>Entry of an Electronic Discovery Plan and Order to Preserve Evidence</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 10/24/2006)
10/24/2006	35	Proposed Pretrial Order <i>Electronic Discovery Plan and Order to Preserve Evidence</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 10/24/2006)
10/24/2006	36	BRIEF in Support re 34 MOTION for Order to <i>Entry of an Electronic Discovery Plan and Order to Preserve Evidence</i> filed by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1# 2 Exhibit 2# 3 Exhibit 3# 4 Exhibit 4# 5 Exhibit 5# 6 Exhibit 6)(Cornish, Craig) (Entered: 10/24/2006)
10/24/2006	37	MOTION for Order to <i>Shorten Time for Defendant to Respond to Plaintiff's Motion for Entry of an Electronic Discovery Plan and Order to Preserve Evidence</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 10/24/2006)
10/24/2006	38	MOTION for Leave to <i>File Second Amended Complaint re: 32 AMENDED COMPLAINT (First Amended Complaint) and Jury Demand</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Proposed Document Second Amended Complaint)(Cornish, Craig) (Modified on 10/25/2006 to add linkage) (dln,). (Entered: 10/24/2006)
10/24/2006	39	NOTICE of Entry of Appearance by Ian David Kalmanowitz on behalf of Karyn S. Palgut (Kalmanowitz, Ian) (Entered: 10/24/2006)
10/25/2006	40	Docket Annotation re: 38 MOTION for Leave to File Second Amended Complaint re: 32 AMENDED COMPLAINT (First Amended Complaint) and Jury Demand by Plaintiff [Entry modified to add linkage]. Text only entry - no document attached. (dln,) (Entered: 10/25/2006)
10/25/2006	41	MEMORANDUM regarding 34 MOTION for Order to <i>Entry of an Electronic Discovery Plan and Order to Preserve Evidence</i> filed by Karyn S. Palgut, 38 MOTION for Leave to <i>File Second Amended Complaint</i> filed by Karyn S. Palgut, 37 MOTION for Order to

		<i>Shorten Time for Defendant to Respond to Plaintiff's Motion for Entry of an Electronic Discovery Plan and Order to Preserve Evidence</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 10/25/06. (wdmsec,) (Entered: 10/25/2006)
10/26/2006	42	MINUTE ORDER : 34 MOTION for Order to Entry of an Electronic Discovery Plan and Order to Preserve Evidence by Plaintiff and 38 MOTION for Leave to File Second Amended Complaint re: 32 AMENDED COMPLAINT (First Amended Complaint) and Jury Demand by Plaintiff. Defendant shall respond by 11/3/06 by Magistrate Judge Michael J. Watanabe on 10/25/06. (dln,) (Entered: 10/26/2006)
11/01/2006	43	Joint MOTION for Hearing/Conference <i>Telephone Status Conference</i> by Plaintiff Karyn S. Palgut and Defendant City of Colorado Springs. (Cornish, Craig) (Modified on 11/2/2006 to add filer) (dln,). (Entered: 11/01/2006)
11/01/2006	44	MEMORANDUM regarding 43 Joint MOTION for Hearing/Conference <i>Telephone Status Conference</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 11/1/06. (wdmsec,) (Entered: 11/01/2006)
11/01/2006	45	MINUTE ORDER granting 43 Joint MOTION for Hearing/Conference Telephone Status Conference. Telephonic Status Conference set for 11/2/06 at 9:00 a.m. by Magistrate Judge Michael J. Watanabe on 11/1/06.(dln,) (Entered: 11/01/2006)
11/01/2006	46	Utility Setting/Resetting Deadlines/Hearings: TELEPHONIC Status Conference set for 11/2/2006 09:00 AM before Magistrate Judge Michael J. Watanabe. Text only entry - no document attached. (dln,) (Entered: 11/01/2006)
11/01/2006	47	ANSWER to Amended Complaint <i>and Affirmative Defenses</i> by Colorado Springs, City of.(Miskel, Lori) (Entered: 11/01/2006)
11/02/2006	48	Minute Entry/Minute Order for proceedings held before Magistrate Judge Michael J. Watanabe : Motion Hearing held on 11/2/2006. (Court Reporter FTR - S. Moore.) (mjwcd,) (Entered: 11/02/2006)
11/03/2006	49	RESPONSE to Motion re 34 MOTION for Order to <i>Entry of an Electronic Discovery Plan and Order to Preserve Evidence</i> filed by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A-D)(Miskel, Lori) (Entered: 11/03/2006)
11/03/2006	50	RESPONSE to Motion re 38 MOTION for Leave to <i>File Second Amended Complaint</i> filed by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 11/03/2006)
11/10/2006	51	REPLY to Response to Motion re 34 MOTION for Order to <i>Entry of an Electronic Discovery Plan and Order to Preserve Evidence</i> filed by Plaintiff Karyn S. Palgut. (Attachments: # 1 Affidavit Exhibit 1- Affidavit of Michael Horwith# 2 Exhibit 2- Proposed Electronic Discovery Plan# 3 Exhibit 3- Series of Emails between Counsel# 4 Exhibit 4- Memo re: Kopper and Palgut# 5 Exhibit 5- Letter from Kopper# 6 Exhibit 6- Letter from Kopper# 7 Affidavit Exhibit 7- Navarro Affidavit# 8 Exhibit 8- Letter from Kopper)(Cornish, Craig) (Entered: 11/10/2006)
11/13/2006	52	MINUTE ORDER: Fining moot and therefore denied 37 MOTION for Order to Shorten Time for Defendant to Respond to Plaintiff's Motion for Entry of an Electronic Discovery Plan and Order to Preserve Evidence by Plaintiff. Granting 38 MOTION for Leave to File Second Amended Complaint re: 32 AMENDED COMPLAINT (First Amended Complaint) and Jury Demand by Plaintiff. Plaintiff shall refile her Second Amended Complaint within five days by Magistrate Judge Michael J. Watanabe on 11/13/06.(dln,) (Entered: 11/13/2006)

11/13/2006	53	AMENDED COMPLAINT (<i>SECOND</i>) against Colorado Springs, City of, filed by Karyn S. Palgut.(Cornish, Craig) (Entered: 11/13/2006)
11/20/2006	54	ANSWER to Amended Complaint by Colorado Springs, City of.(Miskel, Lori) (Entered: 11/20/2006)
11/22/2006	55	ORDER granting 34 MOTION for Order to Entry of an Electronic Discovery Plan and Order to Preserve Evidence by Plaintiff. Plaintiff's discovery plan and order shall be amended by deleting paragraphs V. and the subparts of paragraph V. in its entirety and amending paragraphs VI. and VII. Parties resubmit written electronic discovery plan and order by 12/1/06. Each party to pay own attorney fees and costs. Signed by Magistrate Judge Michael J. Watanabe on 11/21/06.(dln,) (Entered: 11/22/2006)
11/24/2006	56	MOTION to Clarify <i>Orders</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 11/24/2006)
11/28/2006	57	MEMORANDUM regarding 56 MOTION to Clarify <i>Orders</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 11/28/06. (wdmsec,) (Entered: 11/28/2006)
11/29/2006	58	ELECTRONIC DISCOVERY PLAN AND ORDER TO PRESERVE EVIDENCE. Signed by Magistrate Judge Michael J. Watanabe on 11/29/06. (dln,) (Entered: 11/29/2006)
12/01/2006	59	APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 58 Order, 55 Order on Motion for Order, by Plaintiff Karyn S. Palgut (Cornish, Craig) (Entered: 12/01/2006)
12/01/2006	60	BRIEF re 59 APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 58 Order, 55 Order on Motion for Order, by Plaintiff Karyn S. Palgut <i>in support of Objections to Magistrate Judge's Order for Electronic Discovery Plan</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1 - Plf's Interrogatories and Requests for Admission# 2 Exhibit 2 - Plfs Requests for Production of Documents)(Cornish, Craig) (Entered: 12/01/2006)
12/05/2006	61	MINUTE ORDER denying 56 MOTION to Clarify Orders by Plaintiff by Magistrate Judge Michael J. Watanabe on 12/5/06.(dln,) (Entered: 12/05/2006)
12/06/2006	62	MOTION for Protective Order <i>and a Stay of the Deposition of Plaintiff, Karyn Palgut</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 12/06/2006)
12/07/2006	63	MEMORANDUM regarding 62 MOTION for Protective Order <i>and a Stay of the Deposition of Plaintiff, Karyn Palgut</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 12/7/06. (wdmsec,) (Entered: 12/07/2006)
12/07/2006	64	MINUTE ORDER granting 62 MOTION for Protective Order and a Stay of the Deposition of Plaintiff, Karyn Palgut by Plaintiff by Magistrate Judge Michael J. Watanabe on 12/7/06.(dln,) (Entered: 12/07/2006)
12/12/2006	65	Joint MOTION to Vacate (<i>Discovery Deadlines</i>) <i>and to Stay Order and to Stay Discovery Until 10 Days After the Pending Discovery Motions Have Been Ruled on at the District Court Level</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1# 2 Exhibit 2 # 3 Exhibit 3)(Cornish, Craig) (Modified on 12/13/2006 to remove linkage)(dln,). (Entered: 12/12/2006)
12/13/2006	66	Docket Annotation re: 65 Joint MOTION to Vacate (<i>Discovery Deadlines</i>) <i>and to Stay Order and to Stay Discovery Until 10 Days After the Pending Discovery Motions Have Been Ruled on at the District Court Level</i> by Plaintiff. [Entry modified to remove linkage]. Text only entry - no document attached. (dln,) (Entered: 12/13/2006)

12/13/2006	67	MEMORANDUM regarding 65 Joint MOTION to Vacate 31 Scheduling Order (<i>Discovery Deadlines</i>) and to Stay Order and to Stay Discovery Until 10 Days After the Pending Discovery Motions Have Been Ruled on at the District Court Level Joint MOTION to Vacate 31 Scheduling Order (<i>Discovery Deadlines</i>) and to Stay Order and to Stay Discovery Until 10 Days After the Pending Discovery Motions Have Been Ruled on at the District Court Level filed by Karyn S. Palgut. (Text Only Entry - No Document Attached) Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 12/13/06. (wdmsec,) (Entered: 12/13/2006)
12/14/2006	68	MINUTE ORDER granting in part and denying in part 65 Joint MOTION to Vacate (<i>Discovery Deadlines</i>) and to Stay Order and to Stay Discovery Until 10 Days After the Pending Discovery Motions Have Been Ruled on at the District Court Level by Plaintiff. The motion is granted as follows: Settlement Conference set for 12/19/2006 at 1:30 is VACATED. The requirement that parties submit settlement statements is VACATED. The remainder of the motion is denied by Magistrate Judge Michael J. Watanabe on 12/14/06. (dln,) (Entered: 12/14/2006)
12/14/2006	69	APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 61 Order on Motion to Clarify -- <i>Amended Objections to the Magistrate Judge's Order Regarding Plaintiff's Motion for Entry of an Electronic Discovery Plan</i> by Plaintiff Karyn S. Palgut (Attachments: # 1 Exhibit 1 - Def's Response to Plf's 1st Set of Doc Requests# 2 Exhibit 2- Def's Resp to Plf's 1st Set of Interrogatories)(Cornish, Craig) (Entered: 12/14/2006)
12/31/2006	70	MOTION to Compel <i>Discovery</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 12/31/2006)
12/31/2006	71	BRIEF in Support re 70 MOTION to Compel <i>Discovery and Request for Stay of Discovery</i> filed by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1# 2 Exhibit 2# 3 Exhibit 3# 4 Exhibit 4# 5 Exhibit 6# 6 Exhibit 7# 7 Exhibit 8# 8 Exhibit 10# 9 Exhibit 13# 10 Exhibit 14# 11 Exhibit 15# 12 Exhibit 17# 13 Exhibit 18# 14 Exhibit 20)(Cornish, Craig) (Modified on 1/2/2007 to restrict access to the attached exhibits)(pap2,). (Entered: 12/31/2006)
12/31/2006	72	MOTION to Seal Document <i>s (Exhibits)</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 5 to Doc. 71# 2 Exhibit 9 to Doc. 71# 3 Exhibit 11 to Doc. 71# 4 Exhibit 12 to Doc. 71# 5 Exhibit 16 to Doc. 71# 6 Exhibit 19 to Doc. 71# 7 Exhibit 20 to Doc. 71# 8 Exhibit 21 to Doc. 71# 9 Exhibit 22 to Doc. 71# 10 Exhibit 2 to Doc. 73# 11 Exhibit 4 to Doc. 73# 12 Exhibit 7 to Doc. 73# 13 Exhibit 10 to Doc. 73# 14 Exhibit 13 to Doc. 73# 15 Exhibit 15 to Doc. 73# 16 Exhibit 17 to Doc. 73# 17 Exhibit 19 to Doc. 73# 18 Exhibit 21 to Doc. 73# 19 Exhibit 22 to Doc. 73# 20 Exhibit 23 to Doc. 73# 21 Exhibit 24 to Doc. 73# 22 Exhibit 25 to Doc. 73# 23 Exhibit 26 to Doc. 73)(Cornish, Craig) (Entered: 12/31/2006)
12/31/2006	73	MOTION to <i>for Discovery Regarding Spoliation of Evidence</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1# 2 Exhibit 3# 3 Exhibit 5# 4 Exhibit 6# 5 Exhibit 8# 6 Exhibit 9# 7 Exhibit 11# 8 Exhibit 12# 9 Exhibit 14# 10 Exhibit 16# 11 Exhibit 18# 12 Exhibit 20)(Cornish, Craig) (Entered: 12/31/2006)
01/02/2007	74	Docket Annotation re: 72 MOTION to Seal Document (Exhibits). After consulting chambers the exhibits have been sealed pursuant to filers intent. Text only entry - no document attached. (pap2,) (Entered: 01/02/2007)
01/04/2007	75	MEMORANDUM regarding 70 MOTION to Compel <i>Discovery</i> filed by Karyn S. Palgut, 72 MOTION to Seal Document <i>s (Exhibits)</i> MOTION to Seal Document <i>s (Exhibits)</i> MOTION to Seal Document <i>s (Exhibits)</i> filed by Karyn S. Palgut, 73 MOTION to <i>for Discovery Regarding Spoliation of Evidence</i> filed by Karyn S. Palgut. (Text Only Entry -

		No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 1/4/07. (wdmsec,) (Entered: 01/04/2007)
01/04/2007	76	MOTION to File Exhibit Under Seal by Plaintiff Karyn S. Palgut. (gms,) (Entered: 01/05/2007)
01/04/2007	77	SEALED DOCUMENT by Plaintiff Karyn S. Palgut. (gms,) (Entered: 01/05/2007)
01/04/2007	78	Exhibits in Support of 71 Brief in Support of Motion to Compel by Plaintiff Karyn S. Palgut. (Public entry for 77 Sealed Document filed 1/4/07) Text only entry - no document attached. (gms,) (Entered: 01/05/2007)
01/09/2007	79	MEMORANDUM regarding 76 MOTION to Seal Document filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 1/9/07. (wdmsec,) (Entered: 01/09/2007)
01/16/2007	80	Unopposed MOTION For Extension of Time to <i>Amend</i> 31 <i>SCHEDULING ORDER re: Deadline for Plaintiff's Expert Witness Disclosures</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Modified on 1/17/2007 to add linkage) (dln,). (Entered: 01/16/2007)
01/16/2007	81	DECLARATION of <i>Craig Cornish</i> regarding Unopposed MOTION For Extension of Time to <i>Amend Scheduling Order Deadline for Plaintiff's Expert Witness Disclosures</i> 80 by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1- Cover Letter with Index of Tapes# 2 Exhibit 2- Video Production Order# 3 Exhibit 3- Def's 26(a)(1) Disclosures# 4 Exhibit 4- Fadely Memo)(Cornish, Craig) (Entered: 01/16/2007)
01/17/2007	82	Docket Annotation re: 80 Unopposed MOTION For Extension of Time to Amend 31 <i>SCHEDULING ORDER re: Deadline for Plaintiff's Expert Witness Disclosures</i> by Plaintiff. [Entry modified to add linkage]. Text only entry - no document attached. (dln,) (Entered: 01/17/2007)
01/17/2007	83	SUPPLEMENT/AMENDMENT to 70 MOTION to Compel <i>Discovery</i> , 71 Brief in Support of Motion, 73 MOTION to <i>for Discovery Regarding Spoliation of Evidence Supplemental Brief in Support of Documents 70-71 and 73</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1- Memo to Miskel# 2 Exhibit 2- Computer Usage Policy# 3 Exhibit 3- Palgut's Notes# 4 Exhibit 4- Nagl CORA Request# 5 Exhibit 5- Miskel Response to Nagl CORA Request# 6 Exhibit 6- Beaty letter to Vitwar# 7 Exhibit 7- Nagl Letter to Miskel# 8 Exhibit 8- Miskel letter to Nagl# 9 Exhibit 9- Miskel letter to Nagl# 10 Exhibit 10- Emails produced by City)(Cornish, Craig) (Modified on 3/1/2007 to SEAL main PDF and Exhibit 1) (dln,). (Entered: 01/17/2007)
01/18/2007	84	MEMORANDUM regarding 80 Unopposed MOTION For Extension of Time to <i>Amend Scheduling Order Deadline for Plaintiff's Expert Witness Disclosures</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 1/18/07. (wdmsec,) (Entered: 01/18/2007)
01/22/2007	85	MINUTE ORDER granting 80 Unopposed MOTION For Extension of Time to Amend 31 <i>SCHEDULING ORDER re: Deadline for Plaintiff's Expert Witness Disclosures</i> by Plaintiff. Discovery extended to 5/31/07; Final Pretrial Conference remains set for 8/30/07 at 9:30 a.m. Deadline to disclose experts extended to 3/30/07; Rebuttal experts extended to 4/30/07 and dispositive motions by 7/30/07 by Magistrate Judge Michael J. Watanabe on 1/22/07.(dln,) (Entered: 01/22/2007)
01/22/2007	86	Utility Setting/Resetting Deadlines/Hearings: Discovery due by 5/31/2007. Dispositive Motions due by 7/30/2007. Final Pretrial Conference set for 8/30/2007 09:30 AM before Magistrate Judge Michael J. Watanabe. [Text only entry - no document attached]. (dln,) (Entered: 01/22/2007)

01/22/2007	87	RESPONSE to Motion re 70 MOTION to Compel <i>Discovery</i> filed by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit Exhibit 1)(Miskel, Lori) (Entered: 01/22/2007)
01/22/2007	88	RESPONSE to Motion re 73 MOTION to <i>for Discovery Regarding Spoliation of Evidence</i> filed by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 01/22/2007)
01/22/2007	89	RESPONSE to Motion re 72 MOTION to Seal Document <i>s (Exhibits)</i> MOTION to Seal Document <i>s (Exhibits)</i> MOTION to Seal Document <i>s (Exhibits)</i> filed by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 01/22/2007)
01/25/2007	90	MINUTE ORDER granting 72 Motion to Seal Document ; granting 76 Motion to Seal Document by Magistrate Judge Michael J. Watanabe on 1/25/07.(dln,) (Entered: 01/25/2007)
01/26/2007	91	ORDER granting 73 MOTION to for Discovery Regarding Spoliation of Evidence by Plaintiff. Plaintiff shall be given 25 add'l interrogatories which shall be directed at the City for the limited purpose of determining whether spoliation of evidence has taken place by the City and, if so, to what extent. The Rule 16 Scheduling Order is amended consistent with this order. Each party shall pay their own attorney fees and costs. Signed by Magistrate Judge Michael J. Watanabe on 1/26/07.(dln,) (Entered: 01/26/2007)
01/29/2007	92	ORDER denying 70 Pla's Motion to Compel Discovery, each party to pay their own atty fees and costs. Signed by Magistrate Judge Michael J. Watanabe on 1/29/07.(erv,) (Entered: 01/29/2007)
02/05/2007	93	APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 91 Order on Motion for Miscellaneous Relief, 92 Order on Motion to Compel by Plaintiff Karyn S. Palgut (Attachments: # 1 Affidavit Exhibit 1 Horwith Declaration# 2 Exhibit 2 - Sworn female list# 3 Exhibit 3 - Male name list# 4 Exhibit 4 - City Screen Shots# 5 Exhibit 5 - Miskel letter to Cornish# 6 Exhibit 6 - Screen Shots)(Cornish, Craig) (Modified on 3/1/2007 to SEAL main PDF and Exhibit 1) (dln,). (Entered: 02/05/2007)
02/06/2007	94	Docket Annotation: Motions terminated: 93 APPEAL OF MAGISTRATE JUDGE DECISION to District Court. [Document to be refiled by Counsel]. Text only entry - no document attached. (dln,) (Entered: 02/06/2007)
02/06/2007	95	APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 91 Order on Motion for Miscellaneous Relief, by Plaintiff Karyn S. Palgut (Attachments: # 1 Exhibit Ex. 6 4434 Screen Shots)(Cornish, Craig) (Modified on 3/1/2007 to SEAL main PDF) (dln,). (Entered: 02/06/2007)
02/08/2007	96	Docket Annotation re: 95 APPEAL OF MAGISTRATE JUDGE DECISION to District Court. [Incorrect PDF attached as main document - to be refiled by Counsel]. Text only entry - no document attached. (dln,) (Entered: 02/08/2007)
02/09/2007	97	APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 91 Order on Motion for Miscellaneous Relief, <i>Motion for Discovery Regarding Spoliation</i> by Plaintiff Karyn S. Palgut (Attachments: # 1 Exhibit 1# 2 Exhibit 2# 3 Affidavit Exhibit 3- Horwith Declaration)(Cornish, Craig) (Modified on 3/1/2007 to SEAL main PDF and Exhibit 3) (dln,). (Entered: 02/09/2007)
02/12/2007	98	APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 92 Order on Motion to Compel by Plaintiff Karyn S. Palgut (Attachments: # 1 Exhibit 1# 2 Exhibit 2# 3 Exhibit 3# 4 Affidavit 4 - Declaration of Horwith# 5 Affidavit 5 - 3rd Aff of Horwith# 6 Affidavit 6 - 2nd Aff of Horwith# 7 Exhibit 7# 8 Exhibit 8# 9 Exhibit 9# 10 Affidavit 10 - Bardwell Aff# 11 Exhibit 11# 12 Exhibit 12# 13 Exhibit 13# 14 Exhibit 14# 15 Exhibit

		15# 16 Exhibit 16)(Cornish, Craig) (Modified on 3/1/2007 to SEAL main Pdf and Exhibit 4) (dln,). (Entered: 02/12/2007)
02/14/2007	99	RESPONSE to Motion re 97 APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 91 Order on Motion for Miscellaneous Relief, <i>Motion for Discovery Regarding Spoliation</i> by Plaintiff Karyn S. PalgutAPPEAL OF MAGISTRATE JUDGE DECISION to District Court re 91 Order on Motion for Miscellaneous Relief, <i>Motion for Discovery Regarding Spoliation</i> by Plaintiff Karyn S. Palgut filed by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A)(Miskel, Lori) Modified on 2/15/2007 to seal the main document and the attachment, pursuant to the memorandum of 2/15/07 (gmssl,). (Entered: 02/14/2007)
02/15/2007	100	MEMORANDUM to file. Pursuant to the instruction of Judge Miller's chambers, the Response to Plaintiff's Objections to Magistrate Judge's Ruling and its attachment, Document #99 were sealed. Counsel will be filing a motion to seal. (gms,) (Entered: 02/15/2007)
02/15/2007	101	Docket Annotation re: 99 Response to Motion. This docket entry was modified to seal the main document and the attachment, pursuant to the memorandum of 2/15/07. Text only entry - no document attached. (gmssl,) (Entered: 02/15/2007)
02/15/2007	102	MOTION to Seal <i>Information Declared By Plaintiff To Be Attorney Work-Product</i> by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 02/15/2007)
02/15/2007	103	RESPONSE to Motion re 102 MOTION to Seal <i>Information Declared By Plaintiff To Be Attorney Work-Product</i> filed by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 02/15/2007)
02/16/2007	104	MEMORANDUM regarding 102 MOTION to Seal <i>Information Declared By Plaintiff To Be Attorney Work-Product</i> filed by Colorado Springs, City of. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 2/16/07. (wdmsec,) (Entered: 02/16/2007)
02/21/2007	105	MINUTE ORDER granting 102 MOTION to Seal Information Declared By Plaintiff To Be Attorney Work-Product by Defendant. Exhibit 1 and the second and third paragraphs under the section entitled relief requested on page 10 of the Defendants Response (docket no. 99) are sealed by Magistrate Judge Michael J. Watanabe on 2/20/07.(dln,) (Entered: 02/21/2007)
02/21/2007	106	OBJECTION to 97 Appeal of Magistrate Judge Decision on <i>Plaintiff's Motion for Discovery Regarding Spoliation of Evidence (Doc. 91) Re-Filed Pursuant to Order of the Court Dated February 20, 2007 (Doc. 105)</i> by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 02/21/2007)
02/23/2007	107	MOTION For Extension of Time to Respond/Reply 97 APPEAL OF MAGISTRATE JUDGE DECISION to District Court by Plaintiff Karyn S. Palgut. (Cornish, Craig) Modified on 2/26/2007 (dln,). (Modified on 2/26/2007 to add linkage) (dln,). (Entered: 02/23/2007)
02/26/2007	108	Docket Annotation re: 107 MOTION For Extension of Time to Respond/Reply 97 APPEAL OF MAGISTRATE JUDGE DECISION to District Court by Plaintiff. [Entry modified to add linkage]. Text only entry - no document attached. (dln,) (Entered: 02/26/2007)
02/26/2007	109	SEALED DOCUMENT by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit Doc 71-4# 2 Exhibit Doc 71-5# 3 Exhibit Letter# 4 Exhibit Re-serverd interrogs# 5 Exhibit Ex. A# 6 Affidavit Ex 6 2nd Decl of Cornish# 7 Exhibit Metadata authors# 8 Exhibit email# 9 Exhibit Letter# 10 Exhibit Email)(Cornish, Craig) (Entered: 02/26/2007)

02/26/2007	110	MOTION to Seal Document <i>109</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 02/26/2007)
02/26/2007	111	MOTION for Protective Order regarding the Unintentional Disclosure of Embedded Data in an Interroatory by Plaintiff Karyn S. Palgut. [Public Entry for SEALED DOCUMENT 109 - Text Only Entry - No Document Attached]. (dln,) (Entered: 02/27/2007)
02/27/2007	112	MEMORANDUM regarding 111 MOTION for Protective Order filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 2/27/07. (wdmsec,) (Entered: 02/27/2007)
02/27/2007	113	MEMORANDUM regarding 110 MOTION to Seal Document <i>109</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 2/27/07. (wdmsec,) (Entered: 02/27/2007)
02/28/2007	114	MINUTE ORDER granting 110 MOTION to Seal Document 109 by Plaintiff by Magistrate Judge Michael J. Watanabe on 2/28/07.(dln,) (Entered: 02/28/2007)
02/28/2007	115	Unopposed MOTION to Seal Document <i>Designated by Defendant to be Inadvertently Disclosed Attorney Work Product</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 02/28/2007)
03/01/2007	116	MEMORANDUM to file: Pursuant to the filing of Unopposed to Seal Documents Designated by Defendant to be Inadvertently Disclosed Attorney Work Product, [#115] and pending the ruling of same, the following entries have beensealed. a. Documents 83 and 83-2; b. Documents 93 and 93-2; c. Document 95;d. Documents 97 and 97-4; e. Documents 98 and 98-5. (dln,) (Entered: 03/01/2007)
03/02/2007	117	SEALED DOCUMENT by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1# 2 Affidavit Ex 2 Cornish 3rd Decl.# 3 Exhibit 1 to Cornish Decl# 4 Exhibit 2 to Cornish Decl# 5 Exhibit 3# 6 Exhibit 4# 7 Exhibit 5)(Cornish, Craig) (Entered: 03/02/2007)
03/02/2007	118	MOTION to Seal Document <i>117</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 03/02/2007)
03/02/2007	119	Amended MOTION for Protective Order by Plaintiff Karyn S. Palgut. [Public Entry for SEALED DOCUMENT 117 - Text Only Entry - No Document Attached]. (dln,) (Entered: 03/05/2007)
03/05/2007	120	Docket Annotation: Motions terminated: 111 MOTION for Protective Order regarding the Unintentional Disclosure of Embedded Data in an Interrogatory by Plaintiff. [Amended by #119]. Text only entry - no document attached. (dln,) (Entered: 03/05/2007)
03/05/2007	121	MOTION to Seal <i>Motion for Protective Order Regarding the Unintentional Disclosure of the May 2, 2005 Memo</i> by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 03/05/2007)
03/05/2007	122	MOTION to Seal Document <i>For Protective Order Regarding The Unintentional Disclosure of the May 2, 2005 Memo</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A)(Miskel, Lori) (Modified on 3/5/2007 to SEAL entry - sealed document attached to entry - to be refiled by Counsel) (dlsl,). (Entered: 03/05/2007)
03/05/2007	123	Docket Annotation: Motions terminated: 122 MOTION to Seal Document For Protective Order Regarding The Unintentional Disclosure of the May 2, 2005 Memo by Defendant. [Document to be refiled by Counsel as SEALED DOCUMENT]. Text only entry - no document attached. (dln,) (Entered: 03/05/2007)

03/05/2007	124	SEALED DOCUMENT by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A)(Miskel, Lori) (Entered: 03/05/2007)
03/05/2007	125	MOTION for Protective Order regarding the Unintentional Disclosure of the 5/2/2005 Memo by Defendant Colorado Springs, City of. [Public Entry for SEALED DOCUMENT 124 - Text Only Entry - No Document Attached]. (dlntl,) (Entered: 03/05/2007)
03/06/2007	126	MEMORANDUM TO FILE: 122 MOTION to Seal Document For Protective Order Regarding The Unintentional Disclosure of the May 2, 2005 Memo by Defendant. This Docket Entry has been sealed and terminated as a motion. Counsel inadvertently attached the sealed document. Document has been refiled properly as [#124]. (dln,) (Entered: 03/06/2007)
03/06/2007	127	MEMORANDUM regarding 121 MOTION to Seal <i>Motion for Protective Order Regarding the Unintentional Disclosure of the May 2, 2005 Memo</i> filed by Colorado Springs, City of, 115 Unopposed MOTION to Seal Document <i>Designated by Defendant to be Inadvertently Disclosed Attorney Work Product</i> filed by Karyn S. Palgut, 118 MOTION to Seal Document <i>117</i> filed by Karyn S. Palgut, 125 MOTION for Protective Order filed by Colorado Springs, City of. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe. Signed by Judge Walker D. Miller on 3/6/07. (wdmsec,) (Entered: 03/06/2007)
03/07/2007	128	MINUTE ORDER granting 115 Unopposed MOTION to Seal Document Designated by Defendant to be Inadvertently Disclosed Attorney Work Product by Plaintiff; 118 MOTION to Seal Document 117 by Plaintiff and 121 MOTION to Seal Motion for Protective Order Regarding the Unintentional Disclosure of the May 2, 2005 Memo by Defendant by Magistrate Judge Michael J. Watanabe on 3/6/07.(dln,) (Entered: 03/07/2007)
03/07/2007	129	MEMORANDUM regarding 119 MOTION for Protective Order filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 3/7/07. (wdmsec,) (Entered: 03/07/2007)
03/16/2007	130	SEALED DOCUMENT by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1# 2 Exhibit 2# 3 Exhibit 3# 4 Exhibit 4# 5 Exhibit 5# 6 Exhibit 6# 7 Exhibit 7# 8 Exhibit 8# 9 Exhibit 9# 10 Exhibit 10# 11 Exhibit 11# 12 Exhibit 12# 13 Exhibit 13# 14 Exhibit 14# 15 Exhibit 15# 16 Exhibit 16# 17 Exhibit 17# 18 Exhibit 18# 19 Exhibit 19# 20 Exhibit 20# 21 Affidavit Ex. 21 Declaration of Nagl)(Cornish, Craig) (Entered: 03/16/2007)
03/16/2007	131	Unopposed MOTION to Seal Document <i>130</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 03/16/2007)
03/16/2007	132	Opposition (RESPONSE) to Motion re 125 MOTION for Protective Order regarding the Unintentional Disclosure of the 5/2/2005 Memo filed by Plaintiff Karyn S. Palgut. [Public Entry for SEALED DOCUMENT 130 - Text Only Entry - No Document Attached]. (dln,) (Entered: 03/16/2007)
03/16/2007	133	MEMORANDUM regarding 131 Unopposed MOTION to Seal Document 130 by Plaintiff. Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 3/16/07. (Text Only Entry - No Document Attached)(dln,) (Entered: 03/16/2007)
03/20/2007	134	MINUTE ORDER granting 131 Unopposed MOTION to Seal Document 130 by Plaintiff by Magistrate Judge Michael J. Watanabe on 3/20/07.(dln,) (Entered: 03/20/2007)
03/22/2007	135	RESPONSE to Motion re 119 MOTION for Protective Order filed by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 03/22/2007)

03/22/2007	136	MOTION to Amend/Correct/Modify 31 Scheduling Order for a 30-day Extension of Time of the Expert Witness Report Deadline by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1)(Cornish, Craig) (Entered: 03/22/2007)
03/22/2007	137	Second MOTION to Compel Based on Newly Discovered Evidence by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1# 2 Exhibit 2)(Cornish, Craig) (Entered: 03/22/2007)
03/22/2007	138	MOTION to Expedite Responses to Doc. Nos. 136 and 137 by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 03/22/2007)
03/23/2007	139	MEMORANDUM regarding 137 Second MOTION to Compel Based on Newly Discovered Evidence filed by Karyn S. Palgut, 138 MOTION to Expedite Responses to Doc. Nos. 136 and 137 filed by Karyn S. Palgut, 136 MOTION to Amend/Correct/Modify 31 Scheduling Order for a 30-day Extension of Time of the Expert Witness Report Deadline filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 3/23/07. (wdmsec,) (Entered: 03/23/2007)
03/23/2007	140	STATEMENT re 136 MOTION to Amend/Correct/Modify 31 Scheduling Order for a 30-day Extension of Time of the Expert Witness Report Deadline (Supplemental D.C.Colo.LCivR 7.1A Compliance Statement) by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/23/2007)
03/23/2007	141	REPLY to Response to Motion re 119 MOTION for Protective Order filed by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1)(Cornish, Craig) (Entered: 03/23/2007)
03/26/2007	142	MINUTE ORDER granting 136 MOTION to Amend/Correct/Modify 31 Scheduling Order for a 30-day Extension of Time of the Expert Witness Report Deadline by Plaintiff. Granting 138 MOTION to Expedite Responses to Doc. Nos. 136 and 137 by Plaintiff. Re: 137 Second MOTION to Compel Based on Newly Discovered Evidence by Plaintiff, Defendant shall have to 4/6/07 to respond by Magistrate Judge Michael J. Watanabe on 3/26/07.(dln,) (Entered: 03/26/2007)
04/06/2007	143	RESPONSE to Motion re 137 Second MOTION to Compel Based on Newly Discovered Evidence filed by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 04/06/2007)
04/09/2007	144	REPLY to Response to Motion re 137 Second MOTION to Compel Based on Newly Discovered Evidence filed by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 04/09/2007)
04/27/2007	145	ORDER: 137 Second MOTION to Compel Based on Newly Discovered Evidence by Plaintiff is denied. 119 Amended MOTION for Protective Order by Plaintiff Karyn S. Palgut. [Public Entry for SEALED DOCUMENT 117 is granted. 125 MOTION for Protective Order regarding the Unintentional Disclosure of the 5/2/2005 Memo by Defendant Colorado Springs, City of. [Public Entry for SEALED DOCUMENT 124 is granted. Each party shall pay their own attorney fees and costs of the three motions. Signed by Magistrate Judge Michael J. Watanabe on 4/27/07.(dln,) (Entered: 04/27/2007)
04/30/2007	146	Unopposed MOTION to Amend/Correct/Modify 31 SCHEDULING ORDER by Plaintiff Karyn S. Palgut. (Attachments: # 1 Affidavit Neuberg Declaration and Preliminary Report# 2 Affidavit Declaration of Kathryn Ridenour# 3 Exhibit Brauer Resume# 4 Affidavit Bardwell Declaration)(Cornish, Craig) (Modified on 5/1/2007 to add linkage) (dln,). (Entered: 04/30/2007)
05/01/2007	147	MEMORANDUM regarding 146 Unopposed MOTION to Amend/Correct/Modify Scheduling Order filed by Karyn S. Palgut. (Text Only Entry - No Document

		Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 5/1/07. (wdmsec,) (Entered: 05/01/2007)
05/01/2007	148	Docket Annotation re: 146 Unopposed MOTION to Amend/Correct/Modify 31 SCHEDULING ORDER. [Entry modified to add linkage]. Text only entry - no document attached. (dln,) (Entered: 05/01/2007)
05/02/2007	149	MINUTE ORDER granting 146 Unopposed MOTION to Amend/Correct/Modify 31 SCHEDULING ORDER by Plaintiff. Plaintiffs experts by 05/30/2007; Defendants experts by 06/30/2007; Discovery by 07/30/2007 by Magistrate Judge Michael J. Watanabe on 5/2/07.(dln,) (Entered: 05/02/2007)
05/02/2007	150	Utility Setting/Resetting Deadlines/Hearings: Discovery due by 7/30/2007. [Text only entry - no document attached]. (dln,) (Entered: 05/02/2007)
05/02/2007	151	Docket Annotation: Motions terminated: 95 APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 91 Order on Motion for Miscellaneous Relief, by Plaintiff [refiled by #97].. Text only entry - no document attached. (dln,) (Entered: 05/02/2007)
05/02/2007	152	MOTION for Order to <i>of Rule 35 Independent Medical Exams</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1# 2 Exhibit 1 to Declaration of Rudman# 3 Exhibit 2 to Declaration of Rudman# 4 # 5 Exhibit 2# 6 Exhibit 3# 7 Exhibit 4# 8 Exhibit 5# 9 Exhibit 6# 10 Exhibit 7# 11 Exhibit 8)(Cornish, Craig) (Entered: 05/02/2007)
05/07/2007	153	SEALED DOCUMENT by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1- May 2, 2005 Memo)(Cornish, Craig) (Entered: 05/07/2007)
05/07/2007	154	Unopposed MOTION to Seal Document <i>153</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 05/07/2007)
05/07/2007	155	MOTION to Expedite <i>Response to Discovery Requests</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1- Document Requests# 2 Exhibit 2- Interrogatories)(Cornish, Craig) (Entered: 05/07/2007)
05/07/2007	156	APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 145 ORDER dated 04/27/2007 by Plaintiff Karyn S. Palgut. [Public Entry for SEALED DOCUMENT 153 - Text Only Entry - No Document Attached].(dln,) (Modified on 5/8/2007 to indicate text only) (dln,). (Entered: 05/08/2007)
05/08/2007	157	Docket Annotation re: 156 APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 145 ORDER dated 04/27/2007 by Plaintiff Karyn S. Palgut. [Public Entry for SEALED DOCUMENT 153 - Text Only Entry - No Document Attached]. Text only entry - no document attached. (dln,) (Entered: 05/08/2007)
05/08/2007	158	MEMORANDUM regarding 154 Unopposed MOTION to Seal Document <i>153</i> filed by Karyn S. Palgut, 155 MOTION to Expedite <i>Response to Discovery Requests</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 5/8/07. (wdmsec,) (Entered: 05/08/2007)
05/08/2007	159	MEMORANDUM regarding 152 MOTION for Order to <i>of Rule 35 Independent Medical Exams</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 5/8/07. (wdmsec,) (Entered: 05/08/2007)
05/09/2007	160	RESPONSE to Motion re 155 MOTION to Expedite <i>Response to Discovery Requests</i> filed by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 05/09/2007)
05/11/2007	161	MINUTE ORDER: 155 MOTION to Expedite Response to Discovery Requests by Plaintiff is denied. Plaintiffs motion to seal [#137] and 154 Unopposed MOTION to Seal

		Document is granted by Magistrate Judge Michael J. Watanabe on 5/11/07.(dln,) (Entered: 05/11/2007)
05/18/2007	162	RESPONSE to Motion re [#156] APPEAL OF MAGISTRATE JUDGE DECISION to District Court filed by Defendant Colorado Springs, City of. (Miskel, Lori) (Modified on 5/21/2007 to remove linkage) (dln,). (Entered: 05/18/2007)
05/21/2007	163	Docket Annotation re: 162 RESPONSE to Motion re [#156] APPEAL OF MAGISTRATE JUDGE DECISION to District Court. [Document to be refiled as an Objection to Appeal of Magistrate Judge Decision]. Text only entry - no document attached. (dln,) (Entered: 05/21/2007)
05/21/2007	164	OBJECTION to 156 Appeal of Magistrate Judge Decision by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 05/21/2007)
05/21/2007	165	MOTION for Protective Order <i>and Stay of Depositions</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Proposed Order (PDF Only))(Miskel, Lori) (Entered: 05/21/2007)
05/21/2007	166	Joint MOTION to Amend/Correct/Modify 31 Scheduling Order <i>to Facilitate Completion of Expert Witness Reports and Depositions</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Proposed Order (PDF Only) Amended Joint Confidentiality Order)(Cornish, Craig) (Entered: 05/21/2007)
05/22/2007	167	MEMORANDUM regarding 165 MOTION for Protective Order <i>and Stay of Depositions</i> filed by Colorado Springs, City of, 166 Joint MOTION to Amend/Correct/Modify 31 Scheduling Order <i>to Facilitate Completion of Expert Witness Reports and Depositions</i> . Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 5/22/07. (Text Only Entry - No Document Attached) (wdmsec,) (Modified on 5/22/2007 to remove duplicate text) (dln,). (Entered: 05/22/2007)
05/22/2007	168	OBJECTIONS to 165 MOTION for Protective Order <i>and Stay of Depositions (Plaintiff's Partial Objection)</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 05/22/2007)
05/22/2007	169	APPEAL OF MAGISTRATE JUDGE DECISION to District Court re [#145] Order on Motion for Protective Order,, Order on Motion to Compel,,,,, <i>Plaintiff's Reply to the City's Response to Objections to Magistrate Judge Watanabe's Orders on Plaintiff's Second Motion to Compel Based on Newly Discovered Evidence (Doc. 137) and Defendant's Motion for Protective Order Regarding the Unintentional Disclosure of the May 2, 2005 Memo</i> by Plaintiff Karyn S. Palgut (Cornish, Craig) (Modified on 5/23/2007 to remove linkage) (dln,). (Entered: 05/22/2007)
05/23/2007	170	Docket Annotation re: 168 OBJECTIONS to 165 MOTION for Protective Order. [Document to be refiled by Counsel as a Response to Motion]. Text only entry - no document attached. (dln,) (Entered: 05/23/2007)
05/23/2007	171	Docket Annotation re: 169 APPEAL OF MAGISTRATE JUDGE DECISION to District Court. [Document to be refiled by Counsel as a Response to Objection to Appeal of Magistrate Judge Decision]. Text only entry - no document attached. (dln,) (Entered: 05/23/2007)
05/23/2007	172	RESPONSE to Motion re 165 MOTION for Protective Order <i>and Stay of Depositions Plaintiff's Partial Objection to City's Motion for Protective Order</i> filed by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 05/23/2007)
05/23/2007	173	RESPONSE to objection to 156 APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 145 Order on Motion for Protective Order,, Order on Motion to Compel by Plaintiff Karyn S. <i>Plaintiff's Reply to the City's Response to Objections to Magistrate Judge Watanabe's Orders on Plaintiff's Second Motion to Compel Based on Newly</i>

		<i>Discovered Evidence (Doc. 137) and Defendant's Motion for Protective Order Regarding the Unintentional Disclosure of the May 2, 2005 Memo</i> filed by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Modified on 5/23/2007 to remove duplicate text) (dln,). (Entered: 05/23/2007)
05/23/2007	174	RESPONSE to Motion re 152 MOTION for Order to <i>of Rule 35 Independent Medical Exams</i> filed by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 05/23/2007)
05/23/2007	175	MINUTE ORDER granting 166 Joint MOTION to Amend/Correct/Modify 31 Scheduling Order to Facilitate Completion of Expert Witness Reports and Depositions is granted. The Amended Joint Confidentiality Order [166-2] is approved and made an Order of Court. Plaintiff shall respond to 165 MOTION for Protective Order and Stay of Depositions by Defendant on or before 06/01/2007 by Magistrate Judge Michael J. Watanabe on 5/23/07. (dln,) (Entered: 05/23/2007)
05/23/2007	176	AMENDED JOINT CONFIDENTIALITY ORDER. Signed by Magistrate Judge Michael J. Watanabe on 5/23/07. (dln,) (Entered: 05/23/2007)
05/24/2007	177	MINUTE ORDER: 152 MOTION for Order to <i>of Rule 35 Independent Medical Exams</i> by Plaintiff is denied. 165 MOTION for Protective Order and Stay of Depositions by Defendant is granted in part and denied in part by Magistrate Judge Michael J. Watanabe on 5/24/07.(dln,) (Entered: 05/24/2007)
05/30/2007	178	APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 177 Order on Motion for Order, Order on Motion for Protective Order,, <i>Plaintiff's Objections to Magistrate Judge's Ruling Denying Her Request for an IME of City Employees</i> by Plaintiff Karyn S. Palgut (Cornish, Craig) (Entered: 05/30/2007)
06/04/2007	179	SUPPLEMENT/AMENDMENT to 178 APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 177 Order on Motion for Order <i>Plaintiff's Objections to Magistrate Judge's Ruling Denying Her Request for an IME of City Employees</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1 - NY Times Article# 2 Exhibit 2 - Correll et al study)(Cornish, Craig) (Modified on 6/5/2007 to remove duplicate text) (dln,). (Entered: 06/04/2007)
06/05/2007	180	RESPONSE to objection to [#178] APPEAL OF MAGISTRATE JUDGE DECISION to District Court by PI filed by Defendant Colorado Springs, City of. (Miskel, Lori) (Modified on 6/6/2007 to remove linkage) (dln,). (Entered: 06/05/2007)
06/06/2007	181	Docket Annotation re: 180 RESPONSE to objection to [#178] APPEAL OF MAGISTRATE JUDGE DECISION to District Court filed by Defendant. [Document to be refiled by Counsel as Objection to Appeal of Magistrate Judge Decision]. Text only entry - no document attached. (dln,) (Entered: 06/06/2007)
06/06/2007	182	OBJECTION to 178 Appeal of Magistrate Judge Decision by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 06/06/2007)
06/06/2007	183	RESPONSE to objection to 178 APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 177 Order on Motion for Order, Order on Motion for Protective Order,, <i>Plaintiff's Objections to Magistrate Judge's Ruling Denying Her Request for an IME of City Employees</i> filed by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Modified on 6/7/2007 to remove duplicate text) (dln,). (Entered: 06/06/2007)
07/03/2007	184	Joint MOTION to Amend/Correct/Modify 31 Scheduling Order to <i>Extend the Deadlines for Completion of Depositions, Discovery, and Expert Witness Reports</i> by Plaintiff and Defendant. (Cornish, Craig) (Modified on 7/5/2007 to add filer) (dln,). (Entered: 07/03/2007)

07/03/2007	185	MEMORANDUM regarding 184 Joint MOTION to Amend/Correct/Modify 31 Scheduling Order to Extend the Deadlines for Completion of Depositions, Discovery, and Expert Witness Reports filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 7/3/07. (wdmsec,) (Entered: 07/03/2007)
07/03/2007	186	NOTICE of Entry of Appearance by Emily Kathleen Wilson on behalf of Colorado Springs, City of (Wilson, Emily) (Entered: 07/03/2007)
07/05/2007	187	Docket Annotation re: 184 Joint MOTION to Amend/Correct/Modify 31 Scheduling Order to Extend the Deadlines for Completion of Depositions, Discovery, and Expert Witness Reports. [Entry modified to add filer]. Text only entry - no document attached. (dln,) (Entered: 07/05/2007)
07/10/2007	188	MINUTE ORDER granting 184 Joint Motion to Amend Scheduling Order to Extend the Deadlines of Completion of Depositions, Discovery, and Expert WitnessReports. The discovery deadline is extended to October 30, 2007. Plaintiff shall serve expert witness reports by August 30, 2007. Defendant shall serve rebuttal expert reports by September 30, 2007. by Magistrate Judge Michael J. Watanabe on 7/10/07.(erv,) (Entered: 07/10/2007)
07/26/2007	189	MOTION to Quash <i>Subpoena Duces Tecum</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit Exhibit A-D for Motion to Quash Subpoena Duces Tecum) (Miskel, Lori) (Entered: 07/26/2007)
07/27/2007	190	MEMORANDUM regarding 189 MOTION to Quash <i>Subpoena Duces Tecum</i> filed by Colorado Springs, City of. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 7/27/07. (wdmsec,) (Entered: 07/27/2007)
07/30/2007	191	MOTION to Quash <i>Subpoena Duces Tecum</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A)(Miskel, Lori) (Entered: 07/30/2007)
07/30/2007	192	MEMORANDUM regarding 191 MOTION to Quash <i>Subpoena Duces Tecum</i> filed by Colorado Springs, City of. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 7/30/07. (wdmsec,) (Entered: 07/30/2007)
07/30/2007	193	MOTION for Temporary Restraining Order to enjoin Plaintiff from pursuing any conflicting litigation in state court by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A, B, C)(Wilson, Emily) (Modified on 7/31/2007 to correct event) (dln,). (Entered: 07/30/2007)
07/30/2007	194	NOTICE of Defendant's Motion for Temporary Restraining Order by Defendant Colorado Springs, City of (Wilson, Emily) (Modified on 7/31/2007 to correct entry) (dln,). (Entered: 07/30/2007)
07/31/2007	195	Docket Annotation re: 193 MOTION for Temporary Restraining Order to enjoin Plaintiff from pursuing any conflicting litigation in state court by Defendant. [Entry modified to correct event]. Text only entry - no document attached. (dln,) (Entered: 07/31/2007)
07/31/2007	196	RESPONSE to Motion re 189 MOTION to Quash <i>Subpoena Duces Tecum Opposition to Motion to Quash Document Subpoena to the Colorado Metropolitan Certification Board</i> filed by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1 - Instructions# 2 Exhibit 2 - Excerpts of Manual# 3 Exhibit 3 - Application)(Cornish, Craig) (Entered: 07/31/2007)
08/01/2007	197	MINUTE ORDER re: 191 MOTION to Quash Subpoena Duces Tecum by Defendant. Plaintiff has to 08/10/2007 to respond by Magistrate Judge Michael J. Watanabe on

		7/31/07. (dln,) (Entered: 08/01/2007)
08/01/2007	198	RESPONSE to Motion re 191 MOTION to Quash <i>Subpoena Duces Tecum Response to City's Motion to Quash Third Party Document Subpoena for Lori Brown</i> filed by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 08/01/2007)
08/02/2007	199	MINUTE ORDER denying without prejudice 191 MOTION to Quash Subpoena Duces Tecum by Defendant by Magistrate Judge Michael J. Watanabe on 8/2/07.(dln,) (Entered: 08/02/2007)
08/03/2007	200	MOTION to Quash <i>Subpoena Duces Tecum</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A# 2 Exhibit B# 3 Exhibit C)(Miskel, Lori) (Entered: 08/03/2007)
08/03/2007	201	MEMORANDUM regarding 200 MOTION to Quash <i>Subpoena Duces Tecum</i> filed by Colorado Springs, City of. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 8/3/07. (wdmsec,) (Entered: 08/03/2007)
08/03/2007	202	RESPONSE to Motion re 193 MOTION for Temporary Restraining Order <i>Opposition to Defendants Motion for a Temporary Restraining Order to Enjoin Plaintiff from Pursuing a Pending Action in State Court Seeking Judicial Relief under the Colorado Open Records Act</i> filed by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 08/03/2007)
08/07/2007	203	MINUTE ORDER re: 200 MOTION to Quash Subpoena Duces Tecum by Defendant. Plaintiff has to 08/14/2007 to file a response by Magistrate Judge Michael J. Watanabe on 8/7/07. (dln,) (Entered: 08/07/2007)
08/08/2007	204	Minute ORDER Setting Hearing on Motion 193 MOTION for Temporary Restraining Order to enjoin Plaintiff from pursuing any conflicting litigation in state court by Defendant. Motion Hearing set for 8/14/2007 02:00 PM in Courtroom A 902 before Judge Walker D. Miller by Judge Walker D. Miller on 8/8/07. (dln,) (Entered: 08/08/2007)
08/10/2007	205	MOTION for Reconsideration re 145 Order on Motion for Protective Order <i>That May 2, 2005 Memo was Protected by the Work Product Privilege, And Supplemental Information in Support of Objections to the Ruling of April 27, 2007</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1# 2 Exhibit 1# 3 Exhibit 3# 4 Exhibit 4)(Cornish, Craig) (Modified on 8/13/2007 to clarify entry) (dln,). (Entered: 08/10/2007)
08/10/2007	206	CERTIFICATE OF COMPLIANCE <i>With Rule 7.1</i> re 205 MOTION for Reconsideration re 145 Order on Motion for Protective Order <i>That May 2, 2005 Memo was Protected by the Work Product Privilege, And Supplemental Information in Support</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Modified on 8/13/2007 to remove duplicate text) (dln,). (Entered: 08/10/2007)
08/10/2007	207	MEMORANDUM regarding 205 MOTION for Reconsideration re 145 Order on Motion for Protective Order <i>Motion to Reconsider Ruling that May 2, 2005 Memo was Protected by the Work Product Privilege, And Supplemental Information in Support</i> . Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 8/10/07. (Text Only Entry - No Document Attached)(wdmsec,) (Modified on 8/13/2007 to remove duplicate text) (dln,). (Entered: 08/10/2007)
08/10/2007	208	MOTION for Reconsideration of <i>Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1# 2 Exhibit 2# 3 Affidavit Ex. 3# 4 Affidavit Ex 4# 5 Deposition Excerpts Ex. 5# 6 Deposition Excerpts Ex. 6# 7 Deposition Excerpts Ex. 7# 8 Deposition Excerpts Ex. 8# 9 Deposition Excerpts Ex. 9# 10 Deposition Excerpts Ex. 10# 11 Deposition Excerpts Ex. 11# 12 Deposition Excerpts Ex. 12# 13 Exhibit 13# 14 Exhibit 14# 15 Exhibit 15# 16

		Exhibit 16# 17 Deposition Excerpts Ex. 17 # (18) Exhibit 18# 19 Exhibit 19# 20 Exhibit 20# 21 Exhibit 21# 22 Exhibit 22 (23) Affidavit Ex. 23 #24- 3rd Aff)(Cornish, Craig) (Modified on 8/13/2007 for clarification) (dln,). (Entered: 08/10/2007)
08/10/2007	209	CERTIFICATE OF COMPLIANCE re 208 MOTION for Reconsideration of Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence by Plaintiff Karyn S. Palgut. Plaintiff Karyn S. Palgut. (Cornish, Craig) (Modified on 8/13/2007 to clarify entry) (dln,). (Entered: 08/10/2007)
08/13/2007	210	MEMORANDUM regarding 208 MOTION for Reconsideration of Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence by Plaintiff . Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 8/13/07. (Text Only Entry - No Document Attached) (wdmsec,) (Modified on 8/13/2007 to remove duplicate text) (dln,). (Entered: 08/13/2007)
08/13/2007	211	Docket Annotation re: 208 MOTION for Reconsideration of <i>Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence</i> and 205 MOTION for Reconsideration re 145 Order on Motion for Protective Order <i>Motion to Reconsider Ruling that May 2, 2005 Memo was Protected by the Work Product Privilege, And Supplemental Information in Support. [Entries modified to remove duplicate text]. Text only entry - no document attached.</i> (dln,) (Entered: 08/13/2007)
08/13/2007	212	RESPONSE to Motion re 200 MOTION to Quash Subpoena <i>Duces Tecum Opposition to Motion to Quash Document Subpoena to Lori Brown and Request for Order Compelling Production of Documents</i> filed by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1 Excerpts from Navarro Dep# 2 Exhibit 2 Excerpts from Collas Dep# 3 Exhibit 3 PIP# 4 Exhibit 4 Termination letter# 5 Exhibit 5 Excerpts from Brown Dep)(Cornish, Craig) (Entered: 08/13/2007)
08/13/2007	213	Exhibit (Proposed Order) re: 208 MOTION for Reconsideration of <i>Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence Proposed Order for Discovery of Electronically Stored Information (ESI)</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Modified on 8/14/2007 remove duplicate text) (dln,). (Entered: 08/13/2007)
08/13/2007	214	Second MOTION to Amend/Correct/Modify 31 Scheduling Order <i>for Additional Discovery to Prove Unlawful Spoliation of Electronically Stored Information</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1# 2 Affidavit Ex. 2# 3 Deposition Excerpts Ex. 3 # 4 Exhibit 4# 5 Deposition Excerpts Ex. 5# 6 Exhibit 6 # 7 Appendix Ex.7# 8 Exhibit 8# 9 Exhibit 9# 10 Affidavit Ex. 10)(Cornish, Craig) (Modified on 8/14/2007 to remove duplicate text) (dln,). (Entered: 08/13/2007)
08/14/2007	215	MEMORANDUM regarding 214 Second MOTION to Amend/Correct/Modify 31 Scheduling Order <i>for Additional Discovery to Prove Unlawful Spoliation of Electronically Stored Information</i> . Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 8/14/07. (wdmsec,) (Modified on 8/14/2007 to remove duplicate text) (dln,). (Entered: 08/14/2007)
08/14/2007	216	Exhibits in Support of 210 Memorandum, <i>CORRECTED EXHIBIT 1</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 08/14/2007)
08/14/2007	217	Exhibits in Support of 208 MOTION for Reconsideration of <i>Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence CORRECTED EXHIBIT 2</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Modified on 8/14/2007 to remove duplicate text) (dln,). (Entered: 08/14/2007)
08/14/2007	218	Docket Annotation re: 216 Exhibits, 214 Second MOTION to Amend/Correct/Modify 31 Scheduling Order <i>for Additional Discovery to Prove Unlawful Spoliation of Electronically</i>

		<i>Stored Information</i> and 217 Exhibits. [Entries modified to remove duplicate text]. Text only entry - no document attached. (dln,) (Entered: 08/14/2007)
08/14/2007	219	Minute Entry for proceedings held before Judge Walker D. Miller: ORDERED: Defendant's Motion for Temporary Restraining Order (Doc #193) is DENIED. (Court Reporter Janet Coppock) (wdmcd) (Entered: 08/15/2007)
08/27/2007	220	MOTION to Compel <i>Responses to 2006 and 2007 Discovery Requests that Have not Been Denied by Previous Discovery Rulings Based on Newly Discovered Evidence</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1- Plf's 2nd Set of Interrogs# 2 Exhibit 2- Def's resp. to Plf's 2nd set of Interrogs# 3 Deposition Excerpts Ex. 3- Burton Dep.# 4 Exhibit 4- Plf's 1st Set of Doc. Requests# 5 Exhibit 5- spreadsheet "screenings rec'd"# 6 Exhibit 6- spreadsheet "separations 2005"# 7 Exhibit 7- spreadsheet "written scores"# 8 Exhibit 8- spreadsheet "entry level Oct 04"# 9 Exhibit 9- Weblogger excerpts# 10 Deposition Excerpts Ex. 10- Fadely Dep.# 11 Exhibit 11- Def's Resp to Plf's 1st Set of Doc. Requests# 12 Deposition Excerpts Ex. 12- Collas Dep.# 13 Exhibit 13- Kramer email to Crossey# 14 Exhibit 14- CMCB Policies# 15 Exhibit 15- Plf's 2nd Set of Doc. Requests# 16 Exhibit 16- CMCB Application Forms# 17 Exhibit 17- Memo re: Kristin Johnson# 18 Exhibit 18- Weekly schedule# 19 Exhibit 19- Kramer personnel info# 20 Exhibit 20- Plagut employment app# 21 Exhibit 21- Spencer & Wyman sheets# 22 Deposition Excerpts Ex. 22- Harris Dep.)(Cornish, Craig) (Entered: 08/27/2007)
08/28/2007	221	MEMORANDUM regarding 220 MOTION to Compel <i>Responses to 2006 and 2007 Discovery Requests that Have not Been Denied by Previous Discovery Rulings Based on Newly Discovered Evidence</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 8/28/07. (wdmsec,) (Entered: 08/28/2007)
08/29/2007	222	Unopposed MOTION For Extension of Time to by Defendant Colorado Springs, City of. (Wilson, Emily) (Entered: 08/29/2007)
08/29/2007	223	Joint MOTION to Amend/Correct/Modify 85 Order on Motion for Extension of Time, 31 Scheduling Order to Vacate and Reset Final Pretrial Conference by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 08/29/2007)
08/29/2007	224	MINUTE ORDER denying 223 Joint Motion to Vacate and Reset Final Pretrial Conf as untimely filed, and therefore, DENIED. The parties shall appear in court on August 30, 2007, at 9:30 a.m.,by Magistrate Judge Michael J. Watanabe on 8/29/07.(erv,) (Entered: 08/29/2007)
08/29/2007	225	MEMORANDUM regarding 222 Unopposed MOTION For Extension of Time to filed by Colorado Springs, City of. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 8/29/07. (wdmsec,) (Entered: 08/29/2007)
08/30/2007	226	Minute ORDER granting Defendant's 222 Motion for Extension of Time, by Judge Walker D. Miller on 8/30/07.(gms,) (Entered: 08/30/2007)
08/30/2007	227	Minute Entry/Minute Order for proceedings held before Magistrate Judge Michael J. Watanabe : Final Pretrial Conference held on 8/30/2007. Counsel shall file a joint status report by August 31, 2007, at 5:00 p.m. The status report shall indicate which of the above motions have been resolved, and which have not. Final Pretrial Conference RESET for 11/6/2007 08:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Counsel shall submit a proposed final pretrial order by November 1, 2007. The parties are prohibited from filing any new motions until those currently pending are resolved.(Court Reporter FTR - S. Moore.) (mjwcd,) (Entered: 08/30/2007)

08/31/2007	228	Joint STATUS REPORT by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 08/31/2007)
09/04/2007	229	MINUTE ORDER : Status Report due by 9/21/2007 by Magistrate Judge Michael J. Watanabe on 8/31/07. (dln,) (Entered: 09/04/2007)
09/05/2007	230	Minute ORDER denying 107 MOTION For Extension of Time to Respond/Reply 97 APPEAL OF MAGISTRATE JUDGE DECISION to District Court by Plaintiff by Judge Walker D. Miller on 9/4/07.(dln,) (Entered: 09/05/2007)
09/07/2007	231	Unopposed MOTION For Extension of Time to Respond/Reply to 208 MOTION for Reconsideration of Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence by Defendant Colorado Springs, City of. (Miskel, Lori) (Modified on 9/10/2007 to add linkage) (dln,). (Entered: 09/07/2007)
09/10/2007	232	MEMORANDUM regarding 231 Unopposed MOTION For Extension of Time to Respond/Reply to 208 MOTION for Reconsideration of Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence by Defendant. Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 9/10/07. (Text Only Entry - No Document Attached)(dln,) (Entered: 09/10/2007)
09/10/2007	233	Minute ORDER finding moot 69 APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 61 Order on Motion to Clarify -- Amended Objections to the Magistrate Judge's Order Regarding Plaintiff's Motion for Entry of an Electronic Discovery Plan by Plaintiff by Judge Walker D. Miller on 9/7/07.(dln,) (Entered: 09/10/2007)
09/10/2007	234	RESPONSE to Motion re 205 MOTION for Reconsideration re 145 Order on Motion for Protective Order,, Order on Motion to Compel,,,,, <i>Motion to Reconsider Ruling that May 2, 2005 Memo was Protected by the Work Product Privilege, And Supplemental Information in Support filed by Defendant Colorado Springs, City of. (Attachments: # 1 # 2 # 3 # 4 # 5 # 6)(Miskel, Lori) (Modified on 9/11/2007 to remove duplicate text) (dln,). (Entered: 09/10/2007)</i>
09/10/2007	235	RESPONSE to Motion re 208 MOTION for Reconsideration of Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence filed by Defendant Colorado Springs, City of. (Miskel, Lori) (Modified on 9/11/2007 to remove duplicate text) (dln,). (Entered: 09/10/2007)
09/10/2007	236	RESPONSE to Motion re 214 Second MOTION to Amend/Correct/Modify 31 Scheduling Order for Additional Discovery to Prove Unlawful Spoliation of Electronically Stored Information filed by Defendant Colorado Springs, City of. (Miskel, Lori) (Modified on 9/11/2007 to remove duplicate text) (dln,). (Entered: 09/10/2007)
09/11/2007	237	Minute ORDER granting to 09/10/2007 231 Unopposed MOTION For Extension of Time to Respond/Reply to 208 MOTION for Reconsideration of Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence by Defendant by Magistrate Judge Michael J. Watanabe on 9/11/07.(dln,) (Entered: 09/11/2007)
09/17/2007	238	RESPONSE to Motion re 220 MOTION to Compel <i>Responses to 2006 and 2007 Discovery Requests that Have not Been Denied by Previous Discovery Rulings Based on Newly Discovered Evidence</i> filed by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A)(Miskel, Lori) (Entered: 09/17/2007)
09/17/2007	239	MOTION For Extension of Time to <i>File Rebuttal Expert Reports Pursuant to Fed.R.Civ.P. 26(A)(2)</i> by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 09/17/2007)

09/18/2007	240	MEMORANDUM regarding 239 MOTION For Extension of Time to File Rebuttal Expert Reports Pursuant to Fed.R.Civ.P. 26(A)(2) by Defendant. Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 9/18/07. (Text Only Entry - No Document Attached)(dln,) (Entered: 09/18/2007)
09/21/2007	241	Joint STATUS REPORT <i>Re: Outstanding Discovery Motions Pending Before the Magistrate Judge</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 09/21/2007)
09/25/2007	242	REPLY to Response to Motion re 214 Second MOTION to Amend/Correct/Modify 31 Scheduling Order <i>for Additional Discovery to Prove Unlawful Spoliation of Electronically Stored Information</i> Second MOTION to Amend/Correct/Modify 31 Scheduling Order <i>for Additional Discovery to Prove Unlawful Spoliation of Electronically Stored Information</i> filed by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1- Leone Hrg Tr.# 2 Affidavit Ex. 2- Leone Decl.# 3 Exhibit 3- PowerPoint slides# 4 Exhibit 4- Exchange Server PowerPoint slides# 5 Deposition Excerpts Ex. 5- Harris Dep. Tr.# 6 Exhibit 6- PowerPoint slide of "Palgut" search# 7 Exhibit 7-Hearing Tr.# 8 Exhibit 8- Sodbinow email# 9 Exhibit 9- FRCP 26(e) supp disclosure# 10 Affidavit Ex 10- 2nd Decl of Horwith# 11 Exhibit 11- PowerPoint slides of tape restore)(Cornish, Craig) (Entered: 09/25/2007)
09/26/2007	243	SEALED DOCUMENT by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1- May 2, 2005 Memo# 2 Exhibit 2- Miskel ltr 7/6/05# 3 Exhibit 3- Leone Hrg Tr# 4 Exhibit 4- Power Point# 5 Affidavit Ex. 5- Leone Decl# 6 Deposition Excerpts Ex. 6- Harris Dep# 7 Exhibit 7- Hrg Tr# 8 Exhibit 8- Power Point# 9 Exhibit 9- Defs Resp to Plfs 2nd set of Rogs# 10 Exhibit 10 - Power point of search)(Cornish, Craig) (Entered: 09/26/2007)
09/26/2007	244	MOTION to Seal Document 243- <i>Reply to Response to Motion to Reconsider Ruling on May 2, 2005 Memo</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 09/26/2007)
09/26/2007	245	REPLY to Response to Motion re 208 MOTION for Reconsideration of <i>Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence</i> filed by Plaintiff Karyn S. Palgut. (Attachments: # 1 Deposition Excerpts Ex. 1- Harris Dep Tr# 2 Exhibit 2- Hrg Tr# 3 Deposition Excerpts Ex. 3- Collas Dep Excerpt# 4 Exhibit 4- FRCP 26(e) Suppl# 5 Affidavit Ex. 5- Horwith 2nd Decl# 6 Exhibit 6- PowerPoint# 7 Exhibit 7- PowerPoint# 8 Exhibit 8- PowerPoint# 9 Deposition Excerpts Ex. 9- Schopper Dep Tr) (Cornish, Craig) (Modified on 9/26/2007 to remove duplicate text) (dln,). (Entered: 09/26/2007)
09/26/2007	246	REPLY to Response to Motion re 208 MOTION for Reconsideration of Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence by Plaintiff. [Public Entry for SEALED DOCUMENT 243 - Text Only Entry - No Document Attached]. (dln,) (Modified on 10/25/2007 to correct filed date) (dln,). (Entered: 09/26/2007)
09/26/2007	247	MEMORANDUM regarding 244 MOTION to Seal Document 243- <i>Reply to Response to Motion to Reconsider Ruling on May 2, 2005 Memo</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 9/26/07. (wdmsec,) (Entered: 09/26/2007)
09/26/2007	248	Docket Annotation re: 245 REPLY to Response to Motion re 208 MOTION for Reconsideration of Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence filed by Plaintiff. [Entry modified to remove duplicate text]. Text only entry - no document attached. (dln,) (Entered: 09/26/2007)
09/26/2007	249	Exhibits in Support of 242 Reply to Response to Motion,,, <i>New Exhibit 4</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 09/26/2007)

09/26/2007	250	Exhibits in Support of 245 Reply to Response to Motion,, <i>New Exhibit 6</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 09/26/2007)
09/26/2007	251	Minute ORDER: 189 MOTION to Quash Subpoena Duces Tecum by Defendant is denied as moot. 200 MOTION to Quash Subpoena Duces Tecum by Defendant is moot and therefore denied. 205 MOTION for Reconsideration re 145 Order on Motion for Protective Order That May 2, 2005 Memo was Protected by the Work Product Privilege, And Supplemental Information in Support of Objections to the Ruling of April 27, 2007 by Plaintiff is set for hearing 10/15/2007 at 8:00 a.m.. Plaintiff MUST be present, in person, along with her Counsel. Defendant MUST have a client representative present, in person, along with counsel Lori R. Miskel. 208 MOTION for Reconsideration of Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence by Plaintiff is set for hearing 10/16/2007 at 8:00 a.m. Plaintiff MUST be present, in person, along with her counsel, Craig M. Cornish. Defendant MUST have a client representative present. 214 Second MOTION to Amend/Correct/Modify 31 Scheduling Order for Additional Discovery to Prove Unlawful Spoliation of Electronically Stored Information by Plaintiff is set for hearing 10/17/2007 at 8:00 a.m. Plaintiff MUST be present, in person, along with her counsel, Craig M. Cornish. Defendant MUST have a client representative present. 220 MOTION to Compel Responses to 2006 and 2007 Discovery Requests that Have not Been Denied by Previous Discovery Rulings Based on Newly Discovered Evidence by Plaintiff is set for hearing 10/18/07 at 8:00 a.m. Plaintiff MUST be present, in person, along with her counsel, Craig M. Cornish. Defendant MUST have a client representative present. 244 MOTION to Seal Document 243- Reply to Response to Motion to Reconsider Ruling on May 2, 2005 Memo by Plaintiff is granted. 239 MOTION For Extension of Time to File Rebuttal Expert Reports Pursuant to Fed.R.Civ.P. 26(A)(2) by Defendant is granted by Magistrate Judge Michael J. Watanabe on 9/26/07. (dln,) (Entered: 09/26/2007)
09/26/2007	252	ORDER Setting Hearing on Motion 205 MOTION for Reconsideration re 145 Order on Motion for Protective Order That May 2, 2005 Memo was Protected by the Work Product Privilege, And Supplemental Information in Support of Objections to the Ruling of April 27, 2007 by Plaintiff. Motion Hearing set for 10/15/2007 08:00 AM before Magistrate Judge Michael J. Watanabe. [Text Only Order - No Document Attached].(dln,) (Entered: 09/26/2007)
09/26/2007	253	ORDER Setting Hearing on Motion 208 MOTION for Reconsideration of Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence by Plaintiff. Motion Hearing set for 10/16/2007 08:00 AM before Magistrate Judge Michael J. Watanabe. [Text Only Order - No Document Attached]. (dln,) (Entered: 09/26/2007)
09/26/2007	254	ORDER Setting Hearing on Motion 214 Second MOTION to Amend/Correct/Modify 31 Scheduling Order for Additional Discovery to Prove Unlawful Spoliation of Electronically Stored Information by Plaintiff. Motion Hearing set for 10/17/2007 08:00 AM before Magistrate Judge Michael J. Watanabe. [Text Only Order - No Document Attached]. (dln,) (Entered: 09/26/2007)
09/26/2007	255	ORDER Setting Hearing on Motion 220 MOTION to Compel Responses to 2006 and 2007 Discovery Requests that Have not Been Denied by Previous Discovery Rulings Based on Newly Discovered Evidence by Plaintiff. Motion Hearing set for 10/18/2007 08:00 AM before Magistrate Judge Michael J. Watanabe. [Text Only Order - No Document Attached]. (dln,) (Entered: 09/26/2007)
09/26/2007	256	Docket Annotation re: 249 Exhibits in Support of 242 and 250 Exhibits in Support of 245 . [Document to be refiled by Counsel]. Text only entry - no document attached. (dln,) (Entered: 09/26/2007)

09/26/2007	257	Exhibits in Support of 245 Reply to Response to Motion,, 242 Reply to Response to Motion,,, <i>New Exhibit 4 and 6, respectively</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 09/26/2007)
09/26/2007	258	REPLY to Response to Motion re 205 MOTION for Reconsideration re 145 Order on Motion for Protective Order That May 2, 2005 Memo was Protected by the Work Product Privilege, And Supplemental Information in Support of Objections to the Ruling of April 27, 2007 by Plaintiff. [Public Entry for SEALED DOCUMENT 243 - Text Only Entry - No Document Attached]. (dln,) (Entered: 09/27/2007)
10/12/2007	259	Unopposed MOTION to <i>Excuse Craig Cornish from Appearance</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Affidavit Gary Klein, M.D.)(Kalmanowitz, Ian) (Entered: 10/12/2007)
10/15/2007	260	Minute Entry/Minute Order for proceedings held before Magistrate Judge Michael J. Watanabe : denying as moot 259 Motion for Attorney Cornish's Appearance be Excused; Motion Hearing held on 10/15/2007. This week's motions hearings (October 15-18, 2007, at 8:00 a.m.) are VACATED and RESET as follows: October 15, 2007, at 8:00 a.m. (DN 205) is RESET to October 29, 2007, at 8:00 a.m.; October 16, 2007, at 8:00 a.m. (DN 208) is RESET to October 30, 2007, at 8:00 a.m.; October 17, 2007, at 8:00 a.m. (DN 214) is RESET to October 31, 2007, at 8:00 a.m.; October 18, 2007, at 8:00 a.m. (DN 220) is RESET to November 1, 2007, at 8:00 a.m. Plaintiff shall be present, in person, for the above listed hearings with counsel Craig Cornish. Defendant's representative shall be present, in person, with counsel Lori Miskel. Co-counsel may participate, but are not required to do so. (Court Reporter FTR - S. Moore.) (mjwcd,) (Entered: 10/15/2007)
10/15/2007	261	ORDER Setting Hearing on Motion 205 MOTION for Reconsideration Motion Hearing set for 10/29/2007 08:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe, pursuant to courtroom minutes of 10/15/2007. (text only entry - no document attached)(mjwcd,) (Entered: 10/15/2007)
10/15/2007	262	ORDER Setting Hearing on Motion 208 MOTION for Reconsideration of Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence. Motion Hearing set for 10/30/2007 08:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe, pursuant to courtroom minutes of 10/15/2007. (text only entry - no document attached)(mjwcd,) (Entered: 10/15/2007)
10/15/2007	263	ORDER Setting Hearing on Motion 214 Second MOTION to Amend/Correct/Modify 31 Scheduling Order. Motion Hearing set for 10/31/2007 08:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe, pursuant to courtroom minutes of 10/15/2007. (text only entry - no document attached)(mjwcd,) (Entered: 10/15/2007)
10/15/2007	264	ORDER Setting Hearing on Motion 220 MOTION to Compel Responses to 2006 and 2007 Discovery Requests that Have not Been Denied by Previous Discovery Rulings Based on Newly Discovered Evidence. Motion Hearing set for 11/1/2007 08:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe, pursuant to courtroom minutes of 10/15/2007.(text only entry - no document attached)(mjwcd,) (Entered: 10/15/2007)
10/15/2007	265	ORDER: Within thirty (30) minutes of the filing of this Order, attorney Ian David Kalmanowitz or his designee shall send to this courts chambers a copy of the original Affidavit of Gary Klein, M.D., which bears the signatures of Dr. Klein and the notary. By 12:00 noon on Friday, October 19, 2007, plaintiffs counsel shall file with the court under seal for in camera inspection a copy of the relevant portion(s) of Craig M. Cornish's medical record which indicates when Dr. Gary Klein imposed restrictions upon Mr. Cornish that prevented Mr. Cornish from appearing before this court each weekday

		morning at 8:00 a.m. for motions hearings during the week of October 15, 2007. Signed by Magistrate Judge Michael J. Watanabe on 10/15/07. (dln,) (Entered: 10/15/2007)
10/15/2007	266	CERTIFICATE OF SERVICE via facsimile transmission re 265 ORDER (dln,) (Entered: 10/15/2007)
10/19/2007	267	TRANSCRIPT of Pretrial Conference held on 8-30-07 before Magistrate Judge Watanabe. Pages: 1-8. Per statute, copies of transcripts are available for inspection in the clerk's office. Parties interested in a copy may contact the court reporter or, in the case of a transcript prepared from a digital-audio taped record, the courtroom deputy for the judicial officer. (Avery Woods Reporting,) (Entered: 10/19/2007)
10/19/2007	268	TRANSCRIPT of Motions Hearing held on 10-15-07 before Magistrate Judge Watanabe. Pages: 1-6. Per statute, copies of transcripts are available for inspection in the clerk's office. Parties interested in a copy may contact the court reporter or, in the case of a transcript prepared from a digital-audio taped record, the courtroom deputy for the judicial officer. (Avery Woods Reporting,) (Entered: 10/19/2007)
10/19/2007	269	APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 265 Order,, <i>Plaintiffs Objection to Magistrate Judges Order that Plaintiffs Counsel Submit his Personal Medical Records to Magistrate Judge Watanabe for in camera review</i> by Plaintiff Karyn S. Palgut (Kalmanowitz, Ian) (Entered: 10/19/2007)
10/19/2007	270	MOTION for Protective Order <i>and Stay of Magistrate Judges Order that Plaintiffs Counsel Submit his Personal Medical Records to Magistrate Judge Watanabe for in camera review Pending Disposition of the Pending Objection to the Order</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 10/19/2007)
10/22/2007	271	MINUTE ORDER: Plaintiff shall forthwith serve Gary Klein, M.D., with a subpoena to testify for Monday, October 29, 2007, at 8:00 a.m. to provide testimony concerning Dr. Kleins affidavit dated October 12, 2007. The subpoena shall be returnable to the Alfred A. Arraj United States Courthouse by Magistrate Judge Michael J. Watanabe on 10/22/07. (dln,) (Entered: 10/22/2007)
10/23/2007	272	Unopposed MOTION to Amend/Correct/Modify 31 <i>SCHEDULING ORDER</i> by Defendant Colorado Springs, City of. (Miskel, Lori) (Modified on 10/24/2007 to add linkage) (dln,). (Entered: 10/23/2007)
10/23/2007	273	MEMORANDUM regarding 272 Unopposed MOTION to Amend/Correct/Modify <i>Scheduling Order</i> filed by Colorado Springs, City of, 270 MOTION for Protective Order <i>and Stay of Magistrate Judges Order that Plaintiffs Counsel Submit his Personal Medical Records to Magistrate Judge Watanabe for in camera review Pending Disposition of the Pending Objection to the Order</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 10/23/07. (wdmsec,) (Entered: 10/23/2007)
10/23/2007	274	APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 271 Order, <i>Plaintiff's Objection to Magistrate Judge's Order, dated October 22, 2007, that Plaintiff Issue a Subpoena to her Counsel's Personal Family Physician to attend and Testify at a Hearing Set for October 29, 2007</i> by Plaintiff Karyn S. Palgut (Kalmanowitz, Ian) (Entered: 10/23/2007)
10/23/2007	275	MOTION for Protective Order <i>and Stay of Magistrate Judge's Order that Plaintiff Subpoena her Counsel's Personal Physician to Testify at a Hearing Set for October 29, 2007</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Proposed Order (PDF Only)) (Kalmanowitz, Ian) (Entered: 10/23/2007)

10/24/2007	276	Docket Annotation re: 272 Unopposed MOTION to Amend/Correct/Modify 31 SCHEDULING ORDER by Defendant. [Entry modified to add linkage]. Text only entry - no document attached (dln,) (Entered: 10/24/2007)
10/25/2007	277	Minute ORDER Setting Hearing on Motion 272 Unopposed MOTION to Amend/Correct/Modify 31 SCHEDULING ORDER by Defendant. Motion Hearing set for 10/29/2007 08:00 AM before Magistrate Judge Michael J. Watanabe by Magistrate Judge Michael J. Watanabe on 10/25/07. (dln,) (Entered: 10/25/2007)
10/26/2007	278	Docket Annotation re: 246 REPLY to Response to Motion re 208 MOTION for Reconsideration of Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence by Plaintiff. [Public Entry for SEALED DOCUMENT 243 - Text Only Entry - No Document Attached]. (dln,) (Entered: 10/26/2007)
10/26/2007	279	Docket Annotation re: Motion(s) No Longer Referred: 270 MOTION for Protective Order and Stay of Magistrate Judges Order that Plaintiffs Counsel Submit his Personal Medical Records to Magistrate Judge Watanabe for in camera review Pending Disposition of the Pending Objection to the Order by Plaintiff. [Text only entry - no document attached]. (dlnsl,) (Entered: 10/26/2007)
10/26/2007	280	STIPULATION re 208 MOTION for Reconsideration of <i>Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence</i> MOTION for Reconsideration of <i>Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence</i> MOTION for Reconsideration, 205 MOTION for Reconsideration re 145 Order on Motion for Protective Order,, Order on Motion to Compel,,,,, <i>Motion to Reconsider Ruling that May 2, 2005 Memo was Protected by the Work Product Privilege, And Supplemental Information in Support</i> 214 <i>Second MOTION to Amend/Correct/Modify</i> 31 <i>Scheduling Order for Additional Discovery to Prove Unlawful Spoliation of Electronically Stored Information Second MOTION to Amend/Correct/Modify</i> 31 <i>Scheduling Order for Additional Discovery to Prove Unlawful Spoliation of Electronically Stored Information of the Parties Re: Outstanding Discovery Motions Pending Before the Magistrate Judge by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Modified on 10/26/2007 to remove duplicate text)</i> (dln,). (Entered: 10/26/2007)
10/26/2007	281	Docket Annotation re: 280 Stipulation. [Entry modified to remove duplicate text]. Text only entry - no document attached (dln,) (Entered: 10/26/2007)
10/26/2007	282	Docket Annotation re: 280 Stipulation. [Document to be refiled by Counsel as a Motion for Miscellaneous Relief]. Text only entry - no document attached (dln,) (Entered: 10/26/2007)
10/26/2007	283	Stipulated MOTION to <i>of the Parties Re: Outstanding Discovery Motions Pending Before the Magistrate Judge</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Proposed Order (PDF Only))(Kalmanowitz, Ian) (Entered: 10/26/2007)
10/26/2007	284	MEMORANDUM regarding 283 Stipulated MOTION to <i>of the Parties Re: Outstanding Discovery Motions Pending Before the Magistrate Judge</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 10/26/07. (wdmsec,) (Entered: 10/26/2007)
10/26/2007	285	APPEAL OF MAGISTRATE JUDGE DECISION to District Court <i>of Oral Order issued by Magistrate Judge on October 26, 2007</i> by Plaintiff Karyn S. Palgut (Kalmanowitz, Ian) (Entered: 10/26/2007)

10/26/2007	286	MOTION for Protective Order <i>re Magistrate Judges Oral Order to serve a subpoena on Plaintiff's counsel's physician</i> , MOTION to Stay <i>Magistrate Judges Oral Order to serve a subpoena on Plaintiff's counsel's physician</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 10/26/2007)
10/26/2007	287	Minute Entry/Minute Order for proceedings held before Magistrate Judge Michael J. Watanabe: Telephone Status Conference held on 10/26/2007. Plaintiff shall forthwith serve Mr. Cornish's physician. (Court Reporter FTR - S. Moore.) (mjwcd,) (Entered: 10/29/2007)
10/29/2007	288	Minute Entry/Minute Order for proceedings held before Magistrate Judge Michael J. Watanabe: taking under advisement 205 Motion for Reconsideration ; granting 272 Motion to Amend/Correct/Modify; granting 283 Motion ; Motion Hearing held on 10/29/2007 ; Discovery due by 12/31/2007. Dispositive Motions due by 1/31/2008. Proposed Final Pretrial Order due by 4/28/2008. Final Pretrial Conference set for 5/1/2008 08:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Plaintiff Palgut's deposition shall be taken on November 16, 2007, at 9:00 a.m. Steve Newberg's deposition shall be taken on December 10, 2007, at 9:00 a.m. Patricia Pacey's deposition shall be taken on December 17, 2007, at 9:00 a.m. Brian Brauers' deposition shall be taken on December 20, 2007, at 9:00 a.m. Dr. Robert Bardwell's deposition shall be taken on November 21, 2007, at 9:00 a.m. Lynne Eisaguirre's deposition shall be taken on November 28, 2007, at 9:00 a.m. As to witness Deborah Prior, who is located in California, counsel shall meet and confer by November 15, 2007, to set her deposition. The portion of today's hearing concerning this Court's October 15, 2007 Order (DN 265) is VACATED, as subsequent related motions have been filed, and the issues hinge upon rulings to be made by Judge Miller. (Court Reporter FTR - S. Moore.) (mjwcd,) (Entered: 10/29/2007)
10/29/2007	289	Omnibus ORDERS on Pending Discovery Motions. Re: 283 Stipulated MOTION to of the Parties Re: Outstanding Discovery Motions Pending Before the Magistrate Judge; 205 MOTION for Reconsideration re 145 Order on Motion for Protective Order That May 2, 2005 Memo was Protected by the Work Product Privilege, And Supplemental Information in Support of Objections to the Ruling of April 27, 2007 by Plaintiff; 208 MOTION for Reconsideration of Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence by Plaintiff and 220 MOTION to Compel Responses to 2006 and 2007 Discovery Requests that Have not Been Denied by Previous Discovery Rulings Based on Newly Discovered Evidence by Plaintiff. Signed by Magistrate Judge Michael J. Watanabe on 10/29/07. (dln,) (Entered: 10/29/2007)
10/30/2007	290	Minute Entry/Minute Order for proceedings held before Magistrate Judge Michael J. Watanabe: granting in part and denying in part 205 Motion for Reconsideration ; Motion Hearing held on 10/30/2007. As currently postured, the Plaintiff's Motion to Reconsider Ruling that May 2, 2005 Memo was Protected by the Work Product Privilege, And Supplemental Information in Support of Objections to the Ruling of April 27, 2007 (DN 205) is GRANTED IN PART and DENIED IN PART. The motion is granted in that the May 2, 2005 memo shall be UNSEALED. The restricted use of memo by Plaintiff is removed. The motion is denied as to the request for attorney fees and costs. The parties shall pay their own attorney fees and costs. (Court Reporter FTR - S. Moore.) (mjwcd,) (Entered: 10/30/2007)
10/31/2007	291	Minute Entry/Minute Order for proceedings held before Magistrate Judge Michael J. Watanabe: taking under advisement 208 Motion for Reconsideration ; Motion Hearing held on 10/31/2007. Counsel may submit any legal authority in relation to this motion (DN 208) by November 1, 2007. (Court Reporter FTR - S. Moore.) (mjwcd,) (Entered: 10/31/2007)

11/01/2007	292	Minute Entry/Minute Order for proceedings held before Magistrate Judge Michael J. Watanabe: taking under advisement 214 Motion to Amend/Correct/Modify; taking under advisement 220 Motion to Compel; Motion Hearing held on 11/1/2007. Counsel may submit supplemental briefs on the above motions (DN 214 and DN 220) by November 5, 2007, at 5:00 p.m. Counsel are granted an extension of time, up to and including by November 5, 2007, at 5:00 p.m., to submit additional legal authority on the Plaintiff's Motion for Reconsideration of Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence (DN 208). (Court Reporter FTR - S. Moore.) (mjwcd,) (Entered: 11/01/2007)
11/05/2007	293	MINUTE ORDER re: 208 MOTION for Reconsideration of <i>Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence</i> MOTION for Reconsideration of <i>Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence</i> filed by Karyn S. Palgut, 220 MOTION to Compel Responses to 2006 and 2007 Discovery Requests that Have not Been Denied by Previous Discovery Rulings Based on Newly Discovered Evidence filed by Karyn S. Palgut, 214 Second MOTION to Amend/Correct/Modify 31 Scheduling Order for Additional Discovery to Prove Unlawful Spoliation of Electronically Stored Information filed by Karyn S. Palgut. Parties are permitted to 11/06/2007 to submit supplemental legal authority by Magistrate Judge Michael J. Watanabe on 11/5/07. (dln,) (Entered: 11/05/2007)
11/06/2007	294	MOTION For Extension of Time to <i>File Supplemental Brief and Authorities</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 11/06/2007)
11/07/2007	295	Minute ORDER granting to 5:00 p.m. 11/09/2007 294 MOTION For Extension of Time to File Supplemental Brief and Authorities by Plaintiff by Magistrate Judge Michael J. Watanabe on 11/6/07.(dln,) (Entered: 11/07/2007)
11/09/2007	296	Second MOTION For Extension of Time to <i>File Supplemental Brief and Authorities</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 11/09/2007)
11/09/2007	297	MEMORANDUM regarding 296 Second MOTION For Extension of Time to <i>File Supplemental Brief and Authorities</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 11/9/07. (wdmsec,) (Entered: 11/09/2007)
11/12/2007	298	SUPPLEMENT/AMENDMENT to 208 MOTION for Reconsideration of <i>Previous Discovery Rulings (Docs 55, 91, 92, and 145) Based on New Evidence</i> 220 MOTION to Compel Responses to 2006 and 2007 Discovery Requests that Have not Been Denied by Previous Discovery Rulings Based on Newly Discovered Evidence, 214 Second MOTION to Amend/Correct/Modify 31 Scheduling Order for Additional Discovery to Prove Unlawful Spoliation of Electronically Stored InformationSecond MOTION to Amend/Correct/Modify 31 Scheduling Order for Additional Discovery to Prove Unlawful Spoliation of Electronically Stored Information Supplemental Brief and Authorities by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1- Kopper Ltr, # 2 Exhibit 2- Kopper Ltr, # 3 Exhibit 3- Kopper Ltr, # 4 Exhibit 4- Kopper Ltr, # 5 Exhibit 5- Nagl Ltr, # 6 Exhibit 6- Kopper Ltr, # 7 Exhibit 7- Weller Fax, # 8 Exhibit 8- Request for Investigation, # 9 Exhibit 9- State Ct Pleadings, # 10 Exhibit 10- State Ct Pleadings, # 11 Exhibit 11- Kopper Ltr, # 12 Exhibit 12- Miskel ltr to Kopper, # 13 Exhibit 13- Kopper Ltr, # 14 Exhibit 14- Rouse email to nagl, # 15 Exhibit 15- Request for investigation, # 16 Exhibit 16- Kopper ltr, # 17 Exhibit 17- Hearing Tr excerpt Skiffington, # 18 Exhibit 18- Charge of Discrimination, # 19 Exhibit 19- kramer investigation findings, # 20 Exhibit 20 - Kramer follow up ltr, # 21 Exhibit 21- Kramer personnel action form, # 22 Exhibit 22- Interview with Plagut, # 23 Exhibit 23- Kramer statements, # 24 Exhibit 24- Kramer findings, # 25 Exhibit 25- Kramer interviews)(Kalmanowitz, Ian) (Modified on 11/13/2007 to remove duplicate text) (dln,). (Entered: 11/13/2007)

11/13/2007	299	Docket Annotation re: 298 Supplement/Amendment. [Entry modified to remove duplicate text]. Text only entry - no document attached (dln,) (Entered: 11/13/2007)
11/13/2007	300	Minute ORDER granting to 11/13/2007 296 Second MOTION For Extension of Time to File Supplemental Brief and Authorities by Plaintiff by Magistrate Judge Michael J. Watanabe on 11/13/07.(dln,) (Entered: 11/13/2007)
11/13/2007	301	Third MOTION For Extension of Time to <i>Plaintiffs Third Motion for Extension of Time to File Supplemental Brief and Authorities</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 11/13/2007)
11/14/2007	302	MEMORANDUM regarding 301 Third MOTION For Extension of Time to <i>Plaintiffs Third Motion for Extension of Time to File Supplemental Brief and Authorities</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 11/14/07. (wdmsec,) (Entered: 11/14/2007)
11/14/2007	303	MOTION to Strike 301 Third MOTION For Extension of Time to <i>Plaintiffs Third Motion for Extension of Time to File Supplemental Brief and Authorities</i> by Defendant Colorado Springs, City of. (Miskel, Lori) (Modified on 11/15/2007 to correct entry) (dln,). (Entered: 11/14/2007)
11/14/2007	304	Joint MOTION to Vacate <i>Deposition of Karyn S. Palgut Scheduled for November 16, 2007 and Reschedule to November 27, 2007</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Proposed Order (PDF Only) Order)(Miskel, Lori) (Entered: 11/14/2007)
11/14/2007	305	MEMORANDUM regarding 304 Joint MOTION to Vacate <i>Deposition of Karyn S. Palgut Scheduled for November 16, 2007 and Reschedule to November 27, 2007</i> filed by Colorado Springs, City of, 303 MOTION for Bond MOTION to Strike 301 Third MOTION For Extension of Time to <i>Plaintiffs Third Motion for Extension of Time to File Supplemental Brief and Authorities</i> filed by Colorado Springs, City of. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 11/14/07. (wdmsec,) (Entered: 11/14/2007)
11/15/2007	306	Docket Annotation re: 303 Motions terminated: The portion of the motion referring to 303 MOTION for Bond. [This portion of the motion was incorrectly selected during filing. The motion pending is a Motion to Strike #301]. Text only entry - no document attached (dln,) (Entered: 11/15/2007)
11/15/2007	307	ORDER granting 304 Joint MOTION to Vacate <i>Deposition of Karyn S. Palgut Scheduled for November 16, 2007 and Reschedule to November 27, 2007</i> by Defendant. Signed by Magistrate Judge Michael J. Watanabe on 11/14/07.(dln,) (Entered: 11/15/2007)
11/15/2007	308	Minute ORDER denying 301 Third MOTION For Extension of Time to Plaintiffs Third Motion for Extension of Time to File Supplemental Brief and Authorities by Plaintiff and denying 303 MOTION to Strike 301 Third MOTION For Extension of Time to Plaintiffs Third Motion for Extension of Time to File Supplemental Brief and Authorities by Defendant by Magistrate Judge Michael J. Watanabe on 11/15/07.(dln,) (Entered: 11/15/2007)
11/30/2007	309	MOTION to Withdraw as Attorney <i>Plaintiff's Counsel's Motion to Withdraw</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 11/30/2007)
11/30/2007	310	NOTICE re 309 MOTION to Withdraw as Attorney <i>Plaintiff's Counsel's Motion to Withdraw Notification Certificate of Attorney's Withdrawal</i> by Plaintiff Karyn S. Palgut (Cornish, Craig) (Entered: 11/30/2007)

12/03/2007	311	ORDER denying 208 Pla's Motion to Reconsider Previous Discovery of the Magistrate Judge based on New Evidence and/or Supplemental Information in support fo objections to Rulings on Motions to Compel; denying 214 Pla's Second Motion for additional discovery to prove unlawful spoliation of electronically stored information; denying 220 Pla's Motion to Compel Responses to 2006 and 2007 Discovery requests that have not been Denied by previous Discovery rulings based on Newly Discovered Evidence. Signed by Magistrate Judge Michael J. Watanabe on 12/3/07. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2)(erv,) (Entered: 12/03/2007)
12/03/2007	312	MEMORANDUM regarding 309 MOTION to Withdraw as Attorney Plaintiff's Counsel's Motion to Withdraw, filed by Karyn S. Palgut. Signed by Judge Walker D. Miller on 12/3/07. Motions referred to Magistrate Judge Michael J. Watanabe Text Only Entry - No Document Attached)wdmcd) (Entered: 12/03/2007)
12/04/2007	313	MINUTE ORDER DENYING WITHOUT PREJUDICE Plaintiff's Counsel's 309 Motion to Withdraw as Attorney, by Magistrate Judge Michael J. Watanabe on 12/4/07.(mrs,) (Entered: 12/04/2007)
12/04/2007	314	MOTION to Withdraw as Attorney of <i>Craig M. Cornish</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 12/04/2007)
12/04/2007	315	NOTICE re 314 MOTION to Withdraw as Attorney of <i>Craig M. Cornish Notification Certificate of Attorney's Withdrawal</i> by Plaintiff Karyn S. Palgut (Cornish, Craig) (Entered: 12/04/2007)
12/04/2007	316	MOTION to Withdraw as Attorney of <i>Ian D. Kalmanowitz</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 12/04/2007)
12/04/2007	317	NOTICE re 316 MOTION to Withdraw as Attorney of <i>Ian D. Kalmanowitz Notification Certificate of Attorney's Withdrawal</i> by Plaintiff Karyn S. Palgut (Kalmanowitz, Ian) (Entered: 12/04/2007)
12/05/2007	318	MEMORANDUM regarding 314 MOTION to Withdraw as Attorney of Craig M. Cornish and 316 MOTION to Withdraw as Attorney of Ian D. Kalmanowitz by Plaintiff.Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 12/5/07. (Text Only Entry - No Document Attached)(dln,) (Entered: 12/05/2007)
12/06/2007	319	MINUTE ORDER: Plaintiff Karyn S. Palgut and Defendant City of Colorado Springs have up to and including 12/24/07 to respond to 314 MOTION to Withdraw as Attorney of Craig M. Cornish and 316 MOTION to Withdraw as Attorney of Ian D. Kalmanowitz. Clerk of Court is ordered to mail copy of this minute order to Plaintiff Karyn S. Palgut, by Magistrate Judge Michael J. Watanabe on 12/6/07. (sss,) (Entered: 12/06/2007)
12/06/2007	320	CERTIFICATE of Mailing by Clerk of Court re 319 Minute Order. (sss,) (Entered: 12/06/2007)
12/17/2007	321	APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 311 Order on Motion for Reconsideration, Order on Motion to Amend/Correct/Modify, Order on Motion to Compel,,,,, <i>Plaintiff's Objections to Magistrate Judge's Order</i> by Plaintiff Karyn S. Palgut (Cornish, Craig) (Entered: 12/17/2007)
12/17/2007	322	MOTION for Leave to <i>File a Brief in Support of Plaintiff's Objections to Magistrate Judge's Order dated December 3, 2007 (Doc. 311)</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 12/17/2007)
12/17/2007	323	MOTION for Leave to <i>File a Brief in Support of Plaintiff's Objections to magistrate Judge's Order dated December 3, 2007 (Doc. 311)</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 12/17/2007)

12/24/2007	324	RESPONSE to Motion re 316 MOTION to Withdraw as Attorney of <i>Ian D. Kalmanowitz</i> , 314 MOTION to Withdraw as Attorney of <i>Craig M. Cornish</i> filed by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 12/24/2007)
12/26/2007	325	Minute ORDER granting 323 Motion for Leave to file a brief by Judge Walker D. Miller on 12/26/07.(jjh,) (Entered: 12/26/2007)
12/27/2007	326	MOTION For Extension of Time to <i>Extend deadline for filing brief by ten days</i> to objections 321 by Plaintiff Karyn S. Palgut. (Cornish, Craig) Modified on 12/28/2007 to create linkage (gmssl,). (Entered: 12/27/2007)
12/28/2007	327	Docket Annotation re: 326 MOTION For Extension of Time to Extend deadline for filing brief by ten days. This docket entry was modified to create a linkage to Doc #321. Text only entry - no document attached (gmssl,) (Entered: 12/28/2007)
01/01/2008	328	Fourth MOTION to Compel by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit Def's supplemental responses, # 2 Exhibit Def's responses to 3rd doc requests, # 3 Exhibit Def's resp to 3rd set of interrogs and rfas)(Cornish, Craig) (Entered: 01/01/2008)
01/02/2008	329	MEMORANDUM regarding 326 MOTION For Extension of Time to <i>Extend deadline for filing brief by ten days</i> filed by Karyn S. Palgut, 328 Fourth MOTION to Compel filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 1/2/08. (wdmsec,) (Entered: 01/02/2008)
01/02/2008	331	Minute ORDER Setting Hearing on 316 MOTION to Withdraw as Attorney of Ian D. Kalmanowitz and 314 MOTION to Withdraw as Attorney of Craig M. Cornish: Motion Hearing set for 2/11/2008 08:30 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe. Clerk to mail copy of minute order to plaintiff, by Magistrate Judge Michael J. Watanabe on 1/2/08. (gms,) (Entered: 01/03/2008)
01/03/2008	330	Minute ORDER granting Plaintiff's 326 Motion for Extension of Time until 1/7/08 to file brief in support of plaintiff's objections, by Magistrate Judge Michael J. Watanabe on 1/3/08.(gms,) (Entered: 01/03/2008)
01/03/2008	332	CERTIFICATE of Mailing by Clerk of Court of 331 Minute Order of 1/2/08 (gms,) (Entered: 01/03/2008)
01/07/2008	333	BRIEF in Support re 321 APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 311 Order on Motion for Reconsideration, Order on Motion to Amend/Correct/Modify, Order on Motion to Compel <i>Plaintiff's Objections to Magistrate Judge's Order Objection to Order Denying Plaintiff's Motion to Reconsider Previous Discovery Rulings of the magistrate Judge, Based on New Evidence (Doc. 208)</i> filed by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) Modified on 1/8/2008 to remove system-generated duplicate text (sss,). (Entered: 01/07/2008)
01/07/2008	334	BRIEF in Support re 321 APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 311 Order on Motion for Reconsideration, Order on Motion to Amend/Correct/Modify, Order on Motion to Compel <i>Plaintiff's Objections to Magistrate Judge's Order Objection to Order Denying Plaintiff's Second Motion for Additional Discovery to Prove Unlawful Spoliation of Electronically Stored Information (ESI) (Doc. 214)</i> filed by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) Modified on 1/8/2008 to remove system-generated duplicate text (sss,). (Entered: 01/07/2008)
01/07/2008	335	MOTION for Leave to <i>File Reply to Karyn Palgut's Oppositions to Motion to Withdraw</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 01/07/2008)

01/08/2008	336	MEMORANDUM regarding 335 MOTION for Leave to <i>File Reply to Karyn Palgut's Oppositions to Motion to Withdraw</i> filed by Karyn S. Palgut. Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 1/8/08. (Text Only Entry - No Document Attached)(wdmsec,) (Entered: 01/08/2008)
01/08/2008	337	Docket Annotation re: 333 Brief in Support of Motion, 334 Brief in Support of Motion. Docket entries modified to remove system-generated duplicate text. Text only entry - no document attached. (sss,) (Entered: 01/08/2008)
01/10/2008	338	Minute ORDER granting 335 Motion for Leave to File Reply to Karyn Palgut's Oppositions to Motion to Withdraw by Magistrate Judge Michael J. Watanabe on 01/09/08.(jjh,) (Entered: 01/10/2008)
01/14/2008	339	MOTION For Extension of Time to File Reply to Karyn Palgut's Opposition to 316 Motion to Withdraw by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Modified on 1/15/2008 to create linkage to the Motion)(erv,). (Entered: 01/14/2008)
01/15/2008	340	MEMORANDUM regarding 339 MOTION For Extension of Time to <i>File Reply to Karyn Palgut's Opposition to Motion to Withdraw</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 1/15/08. (wdmsec,) (Entered: 01/15/2008)
01/16/2008	341	Minute ORDER granting 339 Motion for Extension of Time to File Reply to Karyn Palgut's Opposition to Motion to Withdraw, plaintiff shall file a reply on or before 1/28/08, by Magistrate Judge Michael J. Watanabe on 1/16/2008.(sah2,) (Entered: 01/16/2008)
01/22/2008	342	RESPONSE to Motion re 328 Fourth MOTION to Compel filed by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Miskel, Lori) (Entered: 01/22/2008)
01/23/2008	343	Minute ORDER Setting Hearing on Motion 328 Fourth MOTION to Compel, 316 MOTION to Withdraw as Attorney of Ian D. Kalmanowitz and 314 MOTION to Withdraw as Attorney of Craig M. Cornish, Motion Hearing set for 2/11/2008 08:30 AM before Magistrate Judge Michael J. Watanabe, by Magistrate Judge Michael J. Watanabe on 1/23/2008. (sah,) (Entered: 01/24/2008)
01/28/2008	344	REPLY to Response to Motion re 316 MOTION to Withdraw as Attorney of Ian D. Kalmanowitz, 314 MOTION to Withdraw as Attorney of Craig M. Cornish <i>Reply to Karyn Palgut's Opposition to Motion to Withdraw</i> filed by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1 - fee agreement)(Kalmanowitz, Ian) (Entered: 01/28/2008)
02/06/2008	345	REPLY to Response to Motion re 328 Fourth MOTION to Compel filed by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 02/06/2008)
02/11/2008	346	Minute Entry/Minute Order for proceedings held before Magistrate Judge Michael J. Watanabe: taking under advisement 314 Cornish's Motion to Withdraw as Attorney; taking under advisement 316 Kalmanowitz's Motion to Withdraw as Attorney; taking under advisement 328 Plaintiff's Fourth Motion to Compel; Motion Hearing held on 2/11/2008. Plaintiff Palgut's Exhibit A and Plaintiff's Counsels' Exhibits 1, 2, 3, and 4 are ADMITTED. Plaintiff Palgut's Oral Motion for Sequestration of Defendant is DENIED. Plaintiff's Counsels' Motion for Ms. Dell'Olio to Specially Enter an Appearance to Conduct Examination is DENIED. Mr. Cornish's Oral Motion to Adopt the Final Arguments of Mr. Kalmanowitz for Himself is GRANTED. (Court Reporter FTR - S. Moore.) (Attachments: # 1 Plaintiff's Counsels' Exhibit 1, # 2 Plaintiff's Counsels' Exhibit 2, # 3 Plaintiff's Counsels' Exhibit 3, # 4 Plaintiff's Counsels' Exhibit 4, # 5 Plaintiff Palgut's Exhibit A) (mjwcd,) (Entered: 02/11/2008)

02/13/2008	347	Minute ORDER denying 328 Plaintiff's Motion to Compel. The parties are to forthwith meet and confer and determine if they can agree upon the amount of such attorney fees and costs by Magistrate Judge Michael J. Watanabe on 02/13/2008.(sah,) (Entered: 02/13/2008)
02/15/2008	348	MOTION for Leave to <i>File Amended Motion to Withdraw</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Proposed Document Amended Motion to Withdraw)(Cornish, Craig) (Entered: 02/15/2008)
02/19/2008	349	MEMORANDUM regarding 348 MOTION for Leave to <i>File Amended Motion to Withdraw</i> filed by Karyn S. Palgut. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 2/19/08. (wdmsec,) (Entered: 02/19/2008)
02/19/2008	350	MINUTE ORDER, The Final Pretrial Conference set for 5/1/08 is VACATED and RESET on 4/30/2008 09:00 AM in Courtroom A 502. The Proposed Final Pretrial Order is due on or before 4/24/2008 by Magistrate Judge Michael J. Watanabe on 02/19/2008. (sah2,) (Entered: 02/19/2008)
02/19/2008	351	MINUTE ORDER re: Defendant and Plaintiff Karyn S. Palgut shall have up to and including March 3, 2008, in which to file any response to Plaintiffs Counsels Motion for Leave to File Amended Motion to Withdraw 348 by Magistrate Judge Michael J. Watanabe on 02/19/2008. (sah2,) (Entered: 02/19/2008)
02/25/2008	352	NOTICE of Filing Bill of Costs by Defendant Colorado Springs, City of (Attachments: # 1 Pages Bill of Costs, # 2 Exhibit A -)(Miskel, Lori) Modified to WITHDRAW pursuant to Minute Order 2/27/2008 on 2/29/2008 (sah2,). (Entered: 02/25/2008)
02/25/2008	353	NOTICE re 352 Notice (Other) of Hearing for Defendant's Bill of Costs by Defendant Colorado Springs, City of (Miskel, Lori) Modified to WITHDRAW pursuant to Minute Order 2/27/2008 2/29/2008 (sah2,). (Entered: 02/25/2008)
02/26/2008	354	AFFIDAVIT <i>and Exhibit for Bill of Costs Pursuant to Minute Order, Dated February 13, 2008</i> by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 02/26/2008)
02/26/2008	355	MOTION to Withdraw 352 <i>Bill of Costs and to Withdraw</i> 353 <i>Notice of Hearing for Defendant's Bill of Costs</i> by Defendant Colorado Springs, City of. (Miskel, Lori) Modified on 2/27/2008 to create linkages (sss,). (Entered: 02/26/2008)
02/27/2008	356	Docket Annotation re: 355 MOTION to Withdraw Bill of Costs and to Withdraw Notice of Hearing for Defendant's Bill of Costs. Docket entry modified to create linkags to notice of bill of costs and notice of hearing. Text only entry - no document attached (sss,) (Entered: 02/27/2008)
02/27/2008	357	MEMORANDUM regarding 355 MOTION to Withdraw <i>Bill of Costs and to Withdraw Notice of Hearing for Defendant's Bill of Costs</i> filed by Colorado Springs, City of.Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 2/27/08. (Text Only Entry - No Document Attached)(wdmsec,) (Entered: 02/27/2008)
02/27/2008	358	MINUTE ORDER granting 355 Defendants Motion to WITHDRAW Bill Of Costs and to Withdraw Notice Of Hearing For Defendant's Bill Of Costs. Docket 352 and 353 are deemed WITHDRAWN. Defendants Affidavit For Bill Of CostsPursuant To Minute Order dated 3/13/2008 has been timely filed by Magistrate Judge Michael J. Watanabe on 02/27/2008.(sah2,) (Entered: 02/27/2008)
02/28/2008	359	APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 347 Order on Motion to Compel <i>by Craig Cornish</i> by Plaintiff Karyn S. Palgut (Attachments: # 1

		Exhibit 1- Excerpt of Feb. 11, 2008 Hearing Transcript)(Kalmanowitz, Ian) (Entered: 02/28/2008)
03/05/2008	360	RESPONSE to 354 Affidavit <i>in Opposition to Bill of Costs</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1- Objections to Fees & Costs)(Kalmanowitz, Ian) (Entered: 03/05/2008)
03/19/2008	361	MINUTE ORDER granting 348 Plaintiffs Counsels Motion for Leave to File Amended Motion to Withdraw. The amended motion to withdraw is accepted for filing by Magistrate Judge Michael J. Watanabe on 03/19/2008.(sah2,) (Entered: 03/19/2008)
03/19/2008	362	AMENDED MOTION to Withdraw by Plaintiff Karyn S. Palgut. (sah2,) (Entered: 03/19/2008)
03/20/2008	363	MEMORANDUM regarding 362 MOTION to Withdraw filed by Karyn S. Palgut. Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 3/20/08. (Text Only Entry - No Document Attached)(wdmsec,) (Entered: 03/20/2008)
03/21/2008	364	ORDER REGARDING denying 314 Motion to Withdraw of Craig M. Cornish as Attorney; denying 316 Motion to Withdraw of Ian D. Kalmanowitz as Attorney; denying [348-2] Amended Motion to Withdraw of Craig M. Cornish as Attorney. Each party shall pay their own attorney fees and costs for this motion. Signed by Magistrate Judge Michael J. Watanabe on 03/21/2008.(sah2,) (Entered: 03/21/2008)
04/02/2008	365	Partial TRANSCRIPT of Motion Hearing held on 2-11-08 before Magistrate Judge Watanabe. Pages: 1-48. Per statute, copies of transcripts are available for inspection in the clerk's office. Parties interested in a copy may contact the court reporter or, in the case of a transcript prepared from a digital-audio taped record, the courtroom deputy for the judicial officer. (Avery Woods Reporting,) (Entered: 04/02/2008)
04/02/2008	366	Partial TRANSCRIPT of Motion Hearing held on 2-11-08 before Magistrate Judge Watanabe. Pages: 1-59. Per statute, copies of transcripts are available for inspection in the clerk's office. Parties interested in a copy may contact the court reporter or, in the case of a transcript prepared from a digital-audio taped record, the courtroom deputy for the judicial officer. (Avery Woods Reporting,) (Entered: 04/02/2008)
04/04/2008	367	APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 364 Order on Motion to Withdraw as Attorney,,, by Plaintiff Karyn S. Palgut (Kalmanowitz, Ian) (Entered: 04/04/2008)
04/07/2008	368	MOTION to Stay <i>by Craig M. Cornish and Ian D. Kalmanowitz</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 04/07/2008)
04/07/2008	369	MEMORANDUM regarding 368 MOTION to Stay <i>by Craig M. Cornish and Ian D. Kalmanowitz</i> filed by Karyn S. Palgut. Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 4/7/08. (Text Only Entry - No Document Attached)(wdmsec,) (Entered: 04/07/2008)
04/08/2008	370	MINUTE ORDER Defendant and Plaintiff Karen Palgut shall have up to and including 4/18/2008, to file a response to Craig M. Cornish, Esq. and Ian D. Kalmanowitz, Esq.s Motion for Stay 368 . Counsel for plaintiff shall serve a copy of their Motion for Stay 368 and this Minute Order upon plaintiff Karen S. Palgut by Magistrate Judge Michael J. Watanabe on 04/08/2008. (sah2,) (Entered: 04/08/2008)
04/16/2008	371	RESPONSE to Motion re 368 MOTION to Stay <i>by Craig M. Cornish and Ian D. Kalmanowitz</i> filed by Defendant Colorado Springs, City of. (Wilson, Emily) (Entered: 04/16/2008)

04/17/2008	372	RESPONSE in Opposition to 368 MOTION to Stay by Craig M. Cornish and Ian D. Kalmanowitz filed by Plaintiff Karyn S. Palgut. (erv,) (Entered: 04/18/2008)
04/22/2008	373	MINUTE ORDER denying 368 Craig M. Cornish and Ian D. Kalmanowitz, Esq.s Motion for Stay. Counsel for Plaintiff shall forthwith serve a copy of this Minute Order upon Plaintiff Karen S. Palgut by Magistrate Judge Michael J. Watanabe on 04/22/2008.(sah,) (Entered: 04/23/2008)
04/28/2008	374	Proposed Pretrial Order by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 04/28/2008)
04/28/2008	375	Exhibit List <i>Defendant's</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 04/28/2008)
04/28/2008	376	Exhibit List <i>Plaintiff's</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 04/28/2008)
04/30/2008	377	COURTROOM MINUTES - Minute Entry for proceedings held before Magistrate Judge Michael J. Watanabe: The Final Pretrial Order is approved and shall be filed.Final Pretrial Conference held on 4/30/2008. (Court Reporter FTR) (psfcd) (Entered: 04/30/2008)
04/30/2008	378	FINAL PRETRIAL ORDER. Signed by Magistrate Judge Michael J. Watanabe on 04/30/2008. (sah,) (Entered: 04/30/2008)
05/06/2008	379	APPEAL OF MAGISTRATE JUDGE DECISION to District Court re 373 Order on Motion to Stay, by Plaintiff Karyn S. Palgut (Kalmanowitz, Ian) (Entered: 05/06/2008)
07/03/2008	380	ORDER denying 269 APPEAL OF MAGISTRATE JUDGE DECISION to District Court; granting without prejudice 274 APPEAL OF MAGISTRATE JUDGE DECISION to District Court; granting without prejudice 285 APPEAL OF MAGISTRATE JUDGE DECISION to District Court; denying as moot 270 Motion for Protective Order; denying as moot 275 Motion for Protective Order; denying as moot 286 Motion for Protective Order. Signed by Judge Walker D. Miller on 07/03/2008.(sah,) (Entered: 07/03/2008)
07/03/2008	381	ORDER : The Plaintiff's objections to Magistrate Judge Watanabe's discovery order, 59 , 97 , 98 , 156 , 178 , 321 are DENIED. Signed by Judge Walker D. Miller on 07/03/2008. (sah,) (Entered: 07/03/2008)
07/30/2008	382	MOTION For Extension of Time by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 07/30/2008)
07/31/2008	383	MINUTE ORDER: Attorney Cornishs 382 motion for enlargement of time to file is granted to 8/14/2008 by Judge Walker D. Miller on 07/31/2008.(sah,) (Entered: 07/31/2008)
08/12/2008	384	MOTION for Leave to <i>Allow Attorney Dennis Hartley to Appear on Behalf of Craig Cornish</i> by Plaintiff Karyn S. Palgut. (Cornish, Craig) (Entered: 08/12/2008)
08/14/2008	385	MOTION for Reconsideration of <i>Order on Various Motions Entered on July 3, 2008, Document No. 380</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 08/14/2008)
08/14/2008	386	MOTION to Stay re 380 Order on Appeal of Magistrate Judge Decision to District Court, Order on Motion for Protective Order,,,,, Order on Motion to Stay,,,,,, <i>pending Ruling on MOTion for Reconsideration of Orders on Various Motions Entered on July 3, 2008, Document 380</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 08/14/2008)

08/14/2008	387	AFFIDAVIT re 380 Order on Appeal of Magistrate Judge Decision to District Court, Order on Motion for Protective Order,,,,, Order on Motion to Stay,,,,,, of <i>Ian D. Kalmanowitz</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 08/14/2008)
09/02/2008	388	OBJECTIONS to <i>Defendant's Trial Exhibits</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 09/02/2008)
09/08/2008	389	OBJECTIONS to <i>Plaintiff's Trial Exhibits</i> by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 09/08/2008)
03/03/2009	390	ORDER on Objections to Orders by Magistrate Judge. Finding as moot 386 Motion to Stay the Entire Case, as this Order addresses the objection. Granting 359 Objection by Craig Cornish, Esq. to Magistrate Judge's Order Imposing Sanctions Against Him Personally, Doc. 347 (APPEAL OF MAGISTRATE JUDGE DECISION to District Court). The portion of Magistrate Judge Watanabes Order dated 2/13/08 (Docket No. 347) ordering Mr. Cornish to personally pay attorneys fees associated with responding the motion to compel (Docket No. 328) is vacated. This Order is without prejudice to a determination of fee and cost liability after notice and hearing. Denying 367 Objection by Craig M. Cornish, Esq. and Ian D. Kalmanowitz, Esq. to Magistrate Judge's Order Denying their Motions to Withdraw, Doc. 364 (APPEAL OF MAGISTRATE JUDGE DECISION to District Court). Denying as moot 379 Objection by Craig M. Cornish and Ian D. Kalmanowitz to Magistrate Judge's Order Denying their Motions for a Stay (Doc. 373) Pursuant to F.R.C.P. 72 (APPEAL OF MAGISTRATE JUDGE DECISION to District Court), by Judge Walker D. Miller on 3/3/09.(ebs,) (Entered: 03/04/2009)
03/04/2009	391	ORDER on Various Motions. Granting 384 Mr. Cornish's Motion for Leave to Allow Attorney Dennis Hartley to Appear on Behalf of Craig Cornish as provided in the order. Mr. Cornish to be added as Mr. Hartley's special counsel, but it does not create an attorney-client relationship. Denying 385 Mr. Cornish's Motion for Reconsideration on Various Motions Entered 7/3/08. 386 Mr. Cornish's MOTION to Stay Pending Ruling on Motion for Reconsideration or Orders on Various Motions is denied as moot, by Judge Walker D. Miller on 3/4/09.(gmssl,) (Entered: 03/04/2009)
03/05/2009	392	MINUTE ORDER Based upon 390 Order on Appeal of Magistrate Judge Decision to District Court and Order on Motion to Stay, it is ORDERED that Defendant shall file on or before 3/20/09 its legal brief in support of attorney fees and costs for having to defend Plaintiff's Motion to Compel (Doc. No. 328) and for having to attend the motions hearing on such motion on 2/11/08. Plaintiff has up to and including 4/6/09 to file response brief. Defendant has up to and including 4/17/09 to file reply brief. In Court Hearing set for 4/20/2009 at 01:30 PM before Magistrate Judge Michael J. Watanabe, by Magistrate Judge Michael J. Watanabe on 3/5/09. (ebs,) (Entered: 03/05/2009)
03/19/2009	393	Unopposed MOTION For Extension of Time to <i>File Brief in Support of Attorney Fees and Costs</i> by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 03/19/2009)
03/20/2009	394	BRIEF <i>In Support of Attorneys Fees</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit Cost Itemization for Bill of Costs, # 2 Exhibit Affidavit of Lori Miskel, # 3 Exhibit Affidavit of Emily Wilson, # 4 Exhibit Affidavit of Gordon Vaughan) (Miskel, Lori) (Entered: 03/20/2009)
03/23/2009	395	Minute ORDER granting 393 Defendanat's Motion for Extension of Time to File Brief Re: Fees and Costs to 3/27/09, by Judge Walker D. Miller on 3/23/09.(gms,) (Entered: 03/23/2009)
03/25/2009	396	ORDER TO SHOW CAUSE: returnable by Misters Cornish and Hartley why Mr. Cornish should not be held in contempt for failing to follow the Court's 3/4/09 Order. Show Cause

		Response due by 4/8/2009, by Judge Walker D. Miller on 3/25/09. (ebs,) (Entered: 03/25/2009)
03/25/2009	397	MOTION to Withdraw as Attorney by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1)(Cornish, Craig) (Entered: 03/25/2009)
03/26/2009	398	CERTIFICATE of Mailing by Clerk of Court re 396 Order to Show Cause. (ebs,) (Entered: 03/26/2009)
04/06/2009	399	BRIEF Responding and Objecting to Defendant's Brief in Support of Attorneys Fees [394 by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1- Itemized Listing of Objections) (Kalmanowitz, Ian) Modified on 4/7/2009 to add correct linkage (jjh,). (Entered: 04/06/2009)
04/07/2009	400	AMENDED 399 Brief, <i>Exhibit 1</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 04/07/2009)
04/08/2009	401	MOTION to Seal by Dennis W. Hartley. (Hartley, Dennis) Modified on 4/13/2009 to correct the name of the filer (gmssl,). (Entered: 04/08/2009)
04/08/2009	402	SEALED DOCUMENT by Dennis Hartley. (Attachments: # 1 Affidavit Affidavit of Craig Cornish)(Hartley, Dennis) Modified on 4/13/2009 to correct the filer (gmssl,). (Entered: 04/08/2009)
04/08/2009	403	RESPONSE TO ORDER TO SHOW CAUSE re 396 by Dennis Hartley. Public Entry for 402 SEALED DOCUMENT filed 04/08/2009. TEXT ONLY ENTRY-NO DOCUMENT ATTACHED. (sahsl,) Modified on 4/13/2009 to correct the name of the filer (gmssl,). (Entered: 04/09/2009)
04/13/2009	404	Docket Annotation re: 402 Sealed Document, 401 MOTION to Seal, 403 Response to Order to Show Cause. These docket entries were modified to correct the name of the filer. Text only entry - no document attached (gmssl,) (Entered: 04/13/2009)
04/13/2009	405	ORDER TO PRODUCE: On or before 04/21/2009, Mr. Cornish shall submit under seal for in camera review the unredacted progress notes of Dr. Gary J. Klein for the dates of October 11 and October 23, 2007, previously submitted with redactions as pages 42, 43, and 44 of doc. no. 402-2, filed 04/08/2009 by Judge Walker D. Miller on 04/13/2009. (sah,) (Entered: 04/14/2009)
04/16/2009	406	ORDER granting 401 Motion to Seal by Judge Walker D. Miller on 04/16/2009.(sah,) (Entered: 04/16/2009)
04/17/2009	407	Joint MOTION to Vacate 392 Minute Order., <i>Hearing</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Proposed Order (PDF Only) proposed order)(Kalmanowitz, Ian) (Entered: 04/17/2009)
04/20/2009	408	MEMORANDUM regarding 407 Joint MOTION to Vacate 392 Minute Order., <i>Hearing</i> filed by Karyn S. Palgut.Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 4/20/09. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(wdmsec,) (Entered: 04/20/2009)
04/20/2009	409	ORDER granting 407 Joint Motion to Vacate the Hearing set by the 392 Minute Order. The parties have resolved the matter to be addressed at the hearing. Therefore, the hearing set for Monday, April 20, 2009 at 1:30 p.m. is vacated, by Magistrate Judge Michael J. Watanabe on 4/20/09.(ebs,) (Entered: 04/20/2009)
04/20/2009	410	SEALED DOCUMENT by Plaintiff Karyn S. Palgut. (Hartley, Dennis) (Entered: 04/20/2009)

04/20/2009	411	MOTION to Reconsider Order to Produce Filed Under Seal by Plaintiff Karyn S. Palgut. (Public entry for Sealed Document 410 filed 04/20/09). Text only entry - no document attached. (wjc,) (Entered: 04/20/2009)
04/20/2009	412	ORDER denying 411 Motion to Reconsider. Mr. Cornish and Mr. Hartley are ordered to produce the unredacted notes immediately, by Judge Walker D. Miller on 04/20/09.(wjc,) (Entered: 04/20/2009)
04/20/2009	413	SEALED DOCUMENT by Plaintiff Karyn S. Palgut. (Hartley, Dennis) (Entered: 04/20/2009)
04/20/2009	414	Production Pursuant to 412 Order on Motion for Reconsideration. Public Entry for 413 SEALED DOCUMENT filed 04/20/2009 by Plaintiff Karyn S. Palgut. (sah2,) (Entered: 04/21/2009)
04/21/2009	415	Docket Annotation re: 410 Sealed Document. Counsel informed to file a Motion to Seal. Text only entry - no document attached. (wjcs1,) (Entered: 04/21/2009)
04/21/2009	416	MOTION to Seal by Plaintiff Karyn S. Palgut. (Hartley, Dennis) (Entered: 04/21/2009)
04/27/2009	417	SEALED - ORDER: This Court is now satisfied that work restrictions were imposed prior to the 10/15/07 Motions Hearing, and therefore no sanctions will be imposed against Mr. Cornish, by Magistrate Judge Michael J. Watanabe on 04/27/09. (wjc,) Modified on 5/1/2009 to seal Order pursuant to the Memorandum of 05/01/09 (wjc,). Modified on 5/6/2009 to add text word sealed (wjc,). (Entered: 04/27/2009)
04/28/2009	418	Minute ORDER granting 416 Motion to File Under Seal, by Judge Walker D. Miller on 4/28/09.(gmssl,) (Entered: 04/28/2009)
04/28/2009	419	ORDER granting 397 Motion to Withdraw as Attorney. Attorney Craig M. Cornish withdrawn as counsel for plaintiff. All other counsel who have appeared on behalf of plaintiff are to remain as counsel of record. Mr. Cornish remains subject to jurisdiction of this court. Mr. Hartley to remain as special counsel for Mr. Cornish will full access to the ECF system, by Judge Walker D. Miller on 4/28/09.(gmssl,) (Entered: 04/28/2009)
04/30/2009	420	MOTION to Seal Document 417 and to Return or Delete medical Records from the Court's Electronic Filing System by Interested Party Craig Cornish. (Hartley, Dennis) Modified on 5/1/2009 to add linkage (wjc,). (Entered: 04/30/2009)
05/01/2009	421	MEMORANDUM by Deputy Clerk pursuant to instructions of Judge Michael J. Watanabe. Order (Doc 417) was sealed. (wjc,) (Entered: 05/01/2009)
05/01/2009	422	Docket Annotation re: 417 Order. Modified on 5/1/2009 to indicate this Order was sealed pursuant to the Memorandum of 05/01/09. Text only entry - no document attached. (wjc,) (Entered: 05/01/2009)
05/04/2009	423	MEMORANDUM regarding 420 MOTION to Seal <i>Document 417 and to Return or Delete medical Records from the Court's Electronic Filing System</i> filed by Craig Cornish.Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 5/4/09. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(wdmsec,) (Entered: 05/04/2009)
05/04/2009	424	MINUTE ORDER Counsel to contact chambers within 5 days to set a trial date, by Judge Walker D. Miller on 5/4/09. (gmssl,) (Entered: 05/04/2009)
05/05/2009	425	Minute ORDER granting 420 Motion to Seal Document 417 and to Return or Delete Medical Records from the Court's Electronic Filing System. The same shall be sealed until further order of the court, by Magistrate Judge Michael J. Watanabe on 5/5/09. (gmssl,) (Entered: 05/05/2009)

05/11/2009	426	MINUTE ORDER 2 week Jury Trial set for 4/5/2010 08:30 AM in Courtroom A 902 before Judge Walker D. Miller. Trial Preparation Conference set for 3/24/2010 at 09:00 AM before Judge Walker D. Miller, by Judge Walker D. Miller on 5/11/09. (gmssl,) (Entered: 05/11/2009)
08/28/2009	427	MOTION for Order to <i>Mediate</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D, # 5 Exhibit E)(Miskel, Lori) (Entered: 08/28/2009)
08/28/2009	428	MEMORANDUM regarding 427 MOTION for Order to <i>Mediate</i> filed by Colorado Springs, City of.Motions referred to Magistrate Judge Michael J. Watanabe by Judge Walker D. Miller on 8/28/09. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(wdmsec,) (Entered: 08/28/2009)
09/01/2009	429	MINUTE ORDER Plaintiff shall file a response on or before 9/11/2009 to 427 Defendant City of Colorado Springs' Motion for an Order to Mediate, by Magistrate Judge Michael J. Watanabe on 09/01/2009. (mjwcd) (Entered: 09/01/2009)
09/11/2009	430	RESPONSE to 427 MOTION for Order to <i>Mediate</i> filed by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 09/11/2009)
09/15/2009	431	MINUTE ORDER granting 427 defendant City of Colorado Springs' Motion for an Order to Mediate;Parties shall participate in formal mediation on or before 10/30/2009;Parties shall conference call with chambers before 9/18/2009 to set a settlement conference date, by Magistrate Judge Michael J. Watanabe on 09/15/2009.(mjwcd) (Entered: 09/15/2009)
09/18/2009	432	MINUTE ORDER: Settlement Conference set for 10/22/2009 10:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe, by Magistrate Judge Michael J. Watanabe on 09/18/2009. (mjwcd) (Entered: 09/18/2009)
10/22/2009	433	MINUTE ENTRY for proceedings held before Magistrate Judge Michael J. Watanabe: Settlement Conference held on 10/22/2009. No settlement reached; settlement conference concluded;no record made. (mjwcd) (Entered: 10/22/2009)
03/08/2010	434	Partial MOTION to Dismiss by Defendant Colorado Springs, City of. (Attachments: # 1 Brief in Support of Defendant's Partial Motion to Dismiss, # 2 Exhibit A to Brief in Support of Partial Mtn to Dismiss, # 3 Exhibit B to Brief in Support of Partial Mtn to Dismiss, # 4 Exhibit C to Brief in Support of Partial Mtn to Dismiss, # 5 Exhibit D to Brief in Support of Partial Mtn to Dismiss)(Miskel, Lori) (Entered: 03/08/2010)
03/08/2010	435	MINUTE ORDER: Plaintiff shall respond to the 434 Partial MOTION to Dismiss on or before 3/19/2010, by Judge Walker D. Miller on 3/8/10. (ebs,) (Entered: 03/08/2010)
03/12/2010	436	NOTICE of Entry of Appearance of <i>Steven W. Moore and Cole A. Wist</i> by Steven W. Moore on behalf of Colorado Springs, City of (Moore, Steven) (Entered: 03/12/2010)
03/12/2010	437	MOTION to Continue <i>Trial Date, Reschedule Trial Preparation Conference, and Set Status Conference</i> by Defendant Colorado Springs, City of. (Moore, Steven) (Entered: 03/12/2010)
03/12/2010	438	MOTION in Limine to <i>Exclude all Affirmative Defenses Not Raised by the Defendant</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/12/2010)
03/12/2010	439	MOTION in Limine to <i>Exclude the Specific Facts of Plaintiffs Criminal History</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/12/2010)
03/12/2010	440	MOTION in Limine to <i>Exclude August 2, 2004 Memo from Manuela Fadely</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/12/2010)

03/12/2010	441	MOTION in Limine to <i>Exclude Rich Kramers Report Regarding Ms. Palguts Allegations of Discrimination</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/12/2010)
03/12/2010	442	RESPONSE to 437 MOTION to Continue <i>Trial Date, Reschedule Trial Preparation Conference, and Set Status Conference</i> filed by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/12/2010)
03/12/2010	443	Proposed Jury Instructions by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/12/2010)
03/12/2010	444	Proposed Verdict Form by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) Modified on 3/15/2010 to alter text to reflect the actual title of this document (gmssl,). (Entered: 03/12/2010)
03/12/2010	445	MOTION in Limine to <i>Exclude All Evidence Relating to the Kopper Familys Financial Support of Ms. Palguts Lawsuit</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/12/2010)
03/12/2010	446	Exhibit List by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/12/2010)
03/12/2010	447	Witness List by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/12/2010)
03/12/2010	448	MOTION in Limine to <i>Exclude Ann Crosseys Expert Testimony</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/12/2010)
03/15/2010	449	Docket Annotation re: 444 Proposed Jury Instructions. This docket entry was modified to alter text to reflect the actual title of this document - Proposed Verdict Form. Text only entry - no document attached (gmssl,) (Entered: 03/15/2010)
03/15/2010	450	Exhibit List (<i>AMENDED</i>) by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/15/2010)
03/16/2010	451	MINUTE ORDER Setting Hearing on Motion 437 MOTION to Continue Trial Date, Reschedule Trial Preparation Conference, and Set Status Conference: Motion Hearing set for 3/18/2010 09:00 AM in Courtroom A 902 before Judge Walker D. Miller, by Judge Walker D. Miller on 3/16/10. (ebs,) (Entered: 03/16/2010)
03/17/2010	452	MOTION to Withdraw as Attorney by Defendant Colorado Springs, City of. (Miskel, Lori) (Entered: 03/17/2010)
03/17/2010	453	REPLY to Response to 437 MOTION to Continue <i>Trial Date, Reschedule Trial Preparation Conference, and Set Status Conference</i> filed by Defendant Colorado Springs, City of. (Moore, Steven) (Entered: 03/17/2010)
03/18/2010	454	Minute Entry for proceedings held before Judge Walker D. Miller: Motion Hearing held on 3/18/2010. The parties are to contact chambers no later than 12:00 noon on Friday, March 19, 2010, with possible trial dates. (Court Reporter Suzanne Claar) (gkram) (Entered: 03/19/2010)
03/19/2010	455	Unopposed MOTION for Extension of Time to <i>Extend Deadline to File Trial Preparation Documents</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order)(Moore, Steven) (Entered: 03/19/2010)
03/19/2010	456	MINUTE ORDER: Jury Trial reset for 4/12/2010 01:00 PM in Courtroom A 902 before Judge Walker D. Miller. Trial Preparation Conference reset for 4/1/2010 at 10:00 AM in Courtroom A 902 before Judge Walker D. Miller, by Judge Walker D. Miller on 3/19/10. (ebs,) (Entered: 03/19/2010)
03/19/2010	457	RESPONSE to 434 Partial MOTION to Dismiss filed by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2)(Kalmanowitz, Ian) (Entered: 03/19/2010)

03/22/2010	458	MINUTE ORDER granting 455 Motion for Extension of deadline for trial preparation documents. The defendant shall file trial preparation documents on or before March 26, 2010. by Judge Walker D. Miller on 3/22/2010.(gkram) (Entered: 03/22/2010)
03/24/2010	459	MOTION in Limine to <i>Exclude the Report and Testimony of Patricia Pacey</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Moore, Steven) (Entered: 03/24/2010)
03/24/2010	460	Witness List by Defendant Colorado Springs, City of. (Wilson, Emily) (Entered: 03/24/2010)
03/24/2010	461	MOTION in Limine to <i>Exclude the Report and Testimony of Brian Brauer</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A)(Moore, Steven) (Entered: 03/24/2010)
03/24/2010	462	MOTION for Order to <i>Depose Patricia Pacey and Allow Testimony By Deposition at Trial</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/24/2010)
03/24/2010	463	MOTION in Limine to <i>Preclude an Award of Back and Front Pay Damages</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C) (Moore, Steven) (Entered: 03/24/2010)
03/24/2010	464	Proposed Voir Dire by Defendant Colorado Springs, City of. (Moore, Steven) (Entered: 03/24/2010)
03/24/2010	465	STATEMENT <i>Written Statement of the Likelihood of Settlement</i> by Defendant Colorado Springs, City of. (Moore, Steven) (Entered: 03/24/2010)
03/25/2010	466	MOTION in Limine to <i>Exclude the Report and Testimony of Robert Bardwell</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D)(Moore, Steven) (Entered: 03/25/2010)
03/25/2010	467	MINUTE ORDER: Settlement Conference set for 3/29/2010 10:00 AM in Courtroom A 502 before Magistrate Judge Michael J. Watanabe, by Magistrate Judge Michael J. Watanabe on 3/25/10. (ebs,) (Entered: 03/25/2010)
03/25/2010	468	MOTION in Limine to <i>Exclude the Testimony of Pam Butler and Nancy Gosch</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A)(Bain, William) (Entered: 03/25/2010)
03/25/2010	469	Proposed Jury Instructions <i>Stipulated Jury Instructions</i> by Defendant Colorado Springs, City of. (Moore, Steven) (Entered: 03/25/2010)
03/26/2010	470	Partial MOTION to Dismiss by Defendant Colorado Springs, City of. (Bain, William) (Entered: 03/26/2010)
03/26/2010	471	BRIEF in Support of 470 Partial MOTION to Dismiss filed by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A to the Brief in Support of Defendant's Partial Motion to Dismiss)(Bain, William) (Entered: 03/26/2010)
03/26/2010	472	RESPONSE to 462 MOTION for Order to <i>Depose Patricia Pacey and Allow Testimony By Deposition at Trial</i> filed by Defendant Colorado Springs, City of. (Moore, Steven) (Entered: 03/26/2010)
03/26/2010	473	MOTION in Limine to <i>Exclude the Report and Testimony of Steven Neuberg</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Moore, Steven) (Entered: 03/26/2010)
03/26/2010	474	Exhibit List (<i>Joint</i>) by Defendant Colorado Springs, City of, Plaintiff Karyn S. Palgut. (Bain, William) (Entered: 03/26/2010)

03/26/2010	475	Proposed Jury Instructions <i>and Verdict Form</i> by Defendant Colorado Springs, City of. (Moore, Steven) (Entered: 03/26/2010)
03/26/2010	476	OBJECTIONS to 443 Proposed Jury Instructions by Defendant Colorado Springs, City of. (Moore, Steven) (Entered: 03/26/2010)
03/26/2010	477	Proposed Jury Instructions by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/26/2010)
03/26/2010	478	MOTION to Amend/Correct/Modify 54 Answer to Amended Complaint <i>to Add The Affirmative Defenses of Failure to Mitigate Damages, Statute of Limitations, Collateral Estoppel and Res Judicata</i> by Defendant Colorado Springs, City of. (Attachments: # 1 Deposition Excerpts A, # 2 Exhibit B)(Moore, Steven) (Entered: 03/26/2010)
03/29/2010	479	REPLY to Response to 434 Partial MOTION to Dismiss filed by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A)(Bain, William) (Entered: 03/29/2010)
03/29/2010	480	NOTICE of Entry of Appearance by William B. Bain on behalf of Colorado Springs, City of (Bain, William) (Entered: 03/29/2010)
03/29/2010	481	RESPONSE to 441 MOTION in Limine <i>to Exclude Rich Kramers Report Regarding Ms. Palguts Allegations of Discrimination</i> filed by Defendant Colorado Springs, City of. (Bain, William) (Entered: 03/29/2010)
03/29/2010	482	RESPONSE to 445 MOTION in Limine <i>to Exclude All Evidence Relating to the Kopper Familys Financial Support of Ms. Palguts Lawsuit</i> filed by Defendant Colorado Springs, City of. (Bain, William) (Entered: 03/29/2010)
03/29/2010	483	RESPONSE to 448 MOTION in Limine <i>to Exclude Ann Crosseys Expert Testimony</i> filed by Defendant Colorado Springs, City of. (Bain, William) (Entered: 03/29/2010)
03/29/2010	484	RESPONSE to 440 MOTION in Limine <i>to Exclude August 2, 2004 Memo from Manuela Fadely</i> filed by Defendant Colorado Springs, City of. (Bain, William) (Entered: 03/29/2010)
03/29/2010	485	MINUTE ENTRY for proceedings held before Magistrate Judge Michael J. Watanabe: Settlement Conference held on 3/29/2010. No settlement reached. No record made. (mjwcd) (Entered: 03/29/2010)
03/29/2010	486	RESPONSE to 439 MOTION in Limine <i>to Exclude the Specific Facts of Plaintiffs Criminal History</i> filed by Defendant Colorado Springs, City of. (Bain, William) (Entered: 03/29/2010)
03/29/2010	487	RESPONSE to 438 MOTION in Limine <i>to Exclude all Affirmative Defenses Not Raised by the Defendant</i> filed by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Bain, William) (Entered: 03/29/2010)
03/29/2010	488	Unopposed MOTION for Extension of Time to File Response/Reply as to 468 MOTION in Limine <i>to Exclude the Testimony of Pam Butler and Nancy Gosch</i> , 473 MOTION in Limine <i>to Exclude the Report and Testimony of Steven Neuberg</i> , 459 MOTION in Limine <i>to Exclude the Report and Testimony of Patricia Pacey</i> , 466 MOTION in Limine <i>to Exclude the Report and Testimony of Robert Bardwell</i> , 461 MOTION in Limine <i>to Exclude the Report and Testimony of Brian Brauer</i> , 463 MOTION in Limine <i>to Preclude an Award of Back and Front Pay Damages</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/29/2010)
03/29/2010	489	MINUTE ORDER granting 488 Plaintiff's Motion for Extension of Time to File Response/Reply to motions in limine. By Jane Trexler, Judicial Assistant, on behalf of

		Judge Walker D. Miller on 3/29/10.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wdmsec,) (Entered: 03/29/2010)
03/30/2010	490	MINUTE ORDER: Trial Preparation Conference reset for 4/5/2010 at 11:00 AM in Courtroom A 902 before Judge Walker D. Miller, by Judge Walker D. Miller on 3/30/10. (ebs,) (Entered: 03/30/2010)
03/30/2010	491	RESPONSE to 459 MOTION in Limine to <i>Exclude the Report and Testimony of Patricia Pacey</i> filed by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit Plfs 26(e) Disclosure, # 2 Exhibit Addendum to Pacey's Report, # 3 Exhibit Excerpt from Pacey's Report) (Kalmanowitz, Ian) (Entered: 03/30/2010)
03/30/2010	492	RESPONSE to 468 MOTION in Limine to <i>Exclude the Testimony of Pam Butler and Nancy Gosch</i> filed by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/30/2010)
03/30/2010	493	RESPONSE to 463 MOTION in Limine to <i>Preclude an Award of Back and Front Pay Damages</i> filed by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit Plfs 26(e) supplement, # 2 Exhibit Pacey's Supplement to Report)(Kalmanowitz, Ian) (Entered: 03/30/2010)
03/30/2010	494	RESPONSE to 466 MOTION in Limine to <i>Exclude the Report and Testimony of Robert Bardwell</i> filed by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit Summary of Terminations, # 2 Exhibit List of Terminations, # 3 SEALED-Exhibit May 9, 2002 Memo, # 4 Deposition Excerpts Vitwar Dep., # 5 Exhibit Ranking List for 2004 Academies, # 6 Exhibit Defs Resp to Plfs 1st Interrogs, # 7 Exhibit CSFD Application, # 8 SEALED-Exhibit Resumes of Terminated Females)(Kalmanowitz, Ian) Modified on 4/5/2010 to seal exhibits 3 and 8 pending ruling on the Motion to Seal (ebs,). (Entered: 03/30/2010)
03/30/2010	495	RESPONSE to 461 MOTION in Limine to <i>Exclude the Report and Testimony of Brian Brauer</i> filed by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit Brauer Resume, # 2 Exhibit Brauer Expert Report)(Kalmanowitz, Ian) (Entered: 03/30/2010)
03/30/2010	496	Second MOTION for Extension of Time to File Response/Reply as to 473 MOTION in Limine to <i>Exclude the Report and Testimony of Steven Neuberg</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 03/30/2010)
03/31/2010	497	MINUTE ORDER granting 496 Motion for Extension of Time to File Response/Reply to motion in limine.By Jane Trexler, Judicial Assistant, on behalf of Judge Walker D. Miller on 3/31/10.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wdmsec,) (Entered: 03/31/2010)
03/31/2010	498	RESPONSE to 473 MOTION in Limine to <i>Exclude the Report and Testimony of Steven Neuberg</i> filed by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit Neuberg Expert Report)(Kalmanowitz, Ian) (Entered: 03/31/2010)
04/01/2010	499	Unopposed MOTION for Protective Order to <i>Seal Exhibits to Doc 494</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 04/01/2010)
04/02/2010	500	Docket Annotation re: 499 Unopposed MOTION for Protective Order to <i>Seal Exhibits to Doc 494</i> . Counsel has been asked to re-file this document by choosing the event Motion to Seal. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (ebs,) (Entered: 04/02/2010)
04/02/2010	501	Trial Memorandum of Law in Support of Dismissal of Due Process Claim, by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C) (Bain, William) Modified on 4/5/2010 to edit text to clarify title of document (ebs,). (Entered: 04/02/2010)

04/02/2010	502	Unopposed MOTION to Seal <i>Exhibits to Doc 494</i> by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 04/02/2010)
04/02/2010	503	TRIAL BRIEF <i>in support of Due Process Claim</i> by Plaintiff Karyn S. Palgut. (Attachments: # 1 Exhibit Civil Service Rule 2.1, # 2 Exhibit FPPA Information, # 3 Exhibit City Charter Art XIV, # 4 Deposition Excerpts Navarro Dep. Tr., # 5 Exhibit Civil Service Rule 7, # 6 Exhibit CSFD Policy 1202)(Kalmanowitz, Ian) (Entered: 04/02/2010)
04/05/2010	504	NOTICE of Entry of Appearance of <i>Donna Dell'Olio</i> by Ian David Kalmanowitz on behalf of Karyn S. Palgut (Kalmanowitz, Ian) (Entered: 04/05/2010)
04/05/2010	505	Docket Annotation re: 501 MOTION for Judgment as a Matter of Law <i>Trial Memorandum of Law in Support of Dismissal of Due Process Claim</i> . This docket entry was modified to edit text to clarify title of document. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (ebs,) (Entered: 04/05/2010)
04/05/2010	510	Minute Entry for proceedings held before Judge Walker D. Miller: Trial Preparation Conference held on 4/5/2010; Status Conference set for 4/8/2010 01:30 PM in Courtroom A 902 before Judge Walker D. Miller; Granting in part and denying in part 434 Motion to Dismiss - supplement responses to the Motion to Dismiss shall be filed no later than 3:00 p.m. Tuesday, April 6, 2010; Granting without prejudice 441 Motion in Limine; Denying 445 Motion in Limine; Granting without prejudice 448 Motion in Limine; Granting 462 Motion for Order to Depose Patricia Pacey and Allow Testimony by Deposition at Trial; and Granting 502 Motion to Seal; (Court Reporter Suzanne Claar) (gkram) (Entered: 04/07/2010)
04/06/2010	506	MINUTE ORDER granting 437 Motion to Continue by Jane Trexler, Judicial Assistant, on behalf of Judge Walker D. Miller on 4/6/10.TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (wdmsec,) (Entered: 04/06/2010)
04/06/2010	507	RESPONSE to 466 MOTION in Limine <i>to Exclude the Report and Testimony of Robert Bardwell (Supplemental)</i> filed by Plaintiff Karyn S. Palgut. (Kalmanowitz, Ian) (Entered: 04/06/2010)
04/06/2010	508	MINUTE ORDER granting 452 Lori Miskel's Motion to Withdraw. Attorney Lori R. Miskel terminated, by Judge Walker D. Miller on 4/6/10.(ebs,) (Entered: 04/06/2010)
04/06/2010	509	ORDER: Plaintiff's 440 Motion in Limine to Exclude an August 2, 2004 Memo from Manuela Fadely is denied as to relevancy at this time without prejudice to further objection when presented at trial, by Judge Walker D. Miller on 4/6/10.(ebs,) (Entered: 04/07/2010)
04/07/2010	511	ORDER: Defendant's 468 Motion In Limine to exclude the testimony of Pam Butler and Nancy Gosch is granted without prejudice to Plaintiff calling either as a legitimate rebuttal witness, by Judge Walker D. Miller on 4/7/10.(ebs,) (Entered: 04/07/2010)
04/07/2010	512	ORDERS: Defendant's partial motion to dismiss 434 is granted to dismiss the Plaintiff's claim of disparate impact and is otherwise denied. Denying 470 Defendant's Partial Motion to Dismiss. Granting in part and denying in part 463 Defendant's Motion in Limine to preclude back and front pay damages. Granting in part and denying in part 478 Defendant's Motion to Amend Its Answer and the Pretrial Order. Granting in part and denying in part 438 Plaintiff's Motion in Limine to exclude affirmative defenses, by Judge Walker D. Miller on 4/7/10.(ebs,) (Entered: 04/07/2010)
04/08/2010	513	Letter from Judge Miller to Counsel re: introductory instructions (Attachments: # 1 Attachment) (gmssl,) (Entered: 04/08/2010)

04/08/2010	514	Minute Entry for proceedings held before Judge Walker D. Miller: Status Conference held on 4/8/2010. Taking under advisement 439 Motion in Limine; Granting in part and denying in part 459 Motion in Limine; Taking under advisement 461 Motion in Limine; Taking under advisement 466 Motion in Limine; Taking under advisement 473 Motion in Limine; (Court Reporter Gwen Daniel) (gkram) (Entered: 04/09/2010)
04/09/2010	515	<i>City's Amended ANSWER to 53 Amended Complaint and Affirmative Defenses</i> by Colorado Springs, City of.(Bain, William) (Entered: 04/09/2010)
04/09/2010	516	Exhibit List <i>Joint-Amended</i> by Defendant Colorado Springs, City of, Plaintiff Karyn S. Palgut. (Bain, William) (Entered: 04/09/2010)
04/12/2010	520	Minute Entry for Evidentiary Hearing proceedings held before Judge Walker D. Miller on 4/12/2010. Taking under advisement 461 Motion in Limine; Taking under advisement 466 Motion in Limine; Taking under advisement 473 Motion in Limine; (Court Reporter Kara Spitler)(babia) (Entered: 04/15/2010)
04/12/2010	521	Minute Entry for Day 1 Jury Trial proceedings held before Judge Walker D. Miller on 4/12/2010. (Court Reporter Kara Spitler)(babia) Modified on 4/16/2010 to add text to indicate which day of trial was held (ebs,). (Entered: 04/15/2010)
04/13/2010	517	Partial TRANSCRIPT of Excerpt, Trial to Jury, Day 2, Brauer Testimony held on 4-13-10 before Judge Miller. Pages: 1-153. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov. </P> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 7/15/2010. (Spitler, Kara) (Entered: 04/13/2010)
04/13/2010	522	Minute Entry for Day 2 Jury Trial proceedings held before Judge Walker D. Miller on 4/13/2010. Granting in part and denying in part 461 Motion in Limine; Plaintiff's Oral Motion To Declare An Immediate Mistrial is DENIED. (Court Reporter Kara Spitler) (babia) (Entered: 04/15/2010)
04/14/2010	518	Proposed Jury Instructions <i>Defendant City of Colorado Springs' Proposed Language Informing the Jury of the Rule 37(c)(1)(B) Sanction Against Plaintiff for Failing to Supplement Her Discovery Responses</i> by Defendant Colorado Springs, City of. (Moore, Steven) (Entered: 04/14/2010)
04/14/2010	524	Minute Entry for Jury Trial Day 3 proceedings held before Judge Walker D. Miller on 4/14/2010. Granting 466 Motion in Limine; Defendant's Oral Motion For A Rule 37(c) Sanction is DENIED. (Court Reporter Kara Spitler)(babia) (Entered: 04/20/2010)
04/15/2010	519	TRIAL BRIEF <i>Defendant's List of Authorities Re: U.S. Forest Service</i> by Defendant Colorado Springs, City of. (Moore, Steven) (Entered: 04/15/2010)
04/15/2010	525	Minute Entry for Jury Trial Day 4 proceedings held before Judge Walker D. Miller on 4/15/2010. Denying 473 Motion in Limine. (Court Reporter Kara Spitler)(babia) (Entered: 04/20/2010)
04/16/2010	523	Docket Annotation re: 521 Jury Trial - Begun. This docket entry was modified to add text to indicate which day of trial was held. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (ebs,) (Entered: 04/16/2010)

04/19/2010	526	Minute Entry for Jury Trial Day 5 proceedings held before Judge Walker D. Miller on 4/19/2010. (Court Reporter Kara Spitler)(babia) (Entered: 04/21/2010)
04/20/2010	527	Minute Entry for Jury Trial Day 6 proceedings held before Judge Walker D. Miller on 4/20/2010. (Court Reporter Kara Spitler)(babia) (Entered: 04/22/2010)
04/21/2010	528	Minute Entry for Jury Trial Day 7 proceedings held and completed before Judge Walker D. Miller on 4/21/2010. Oral Rule 50 Motion GRANTED, as it relates to the consumer credit reporting act claim which is dismissed as a matter of law. Oral Rule 50 Motion taken UNDER ADVISEMENT on additional claim as specified. (Attachments: # 1 Exhibit). JURY VERDICT. (Court Reporter Kara Spitler) (babia) (Additional attachment(s) added on 4/22/2010: # 2 Redacted Verdict Form) (ebs,). Modified on 4/22/2010 to add text to indicate which day of trial was held and to add the Redacted Verdict Form attachment (ebs,). (Entered: 04/22/2010)
04/21/2010	529	Stipulation and Order Regarding Governing The Custody And Disposition of Trial Exhibits, Transcripts, and Papers. Signed by Judge Walker D. Miller on 4/21/10. (babia) Modified on 4/23/2010 to correct the file date (ebs,). (Entered: 04/22/2010)
04/22/2010	530	Docket Annotation re: 528 Jury Trial - Completed. This docket entry was modified to add text to indicate which day of trial was held and to add the Redacted Verdict Form attachment. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (ebs,) (Entered: 04/22/2010)
04/23/2010	531	Docket Annotation re: 529 Order. This docket entry was modified to correct the file date. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (ebs,) (Entered: 04/23/2010)
04/26/2010	532	MOTION to Withdraw as Attorney by Defendant Colorado Springs, City of. (Attachments: # 1 Proposed Order (PDF Only) RE Mtn to Withdraw)(Wilson, Emily) (Entered: 04/26/2010)
04/27/2010	533	MINUTE ORDER granting 532 Motion to Withdraw as Attorney. Attorney Emily Kathleen Wilson terminated, by Judge Walker D. Miller on 4/27/10.(ebs,) (Entered: 04/27/2010)
05/04/2010	534	JUDGMENT by Clerk, approved as to form by Judge Miller. Judgment shall enter for the Defendant, City of Colorado Springs and against the Plaintiff, Ms. Karyn S. Palgut. Defendant, is awarded its allowable costs from the plaintiff, on the filing of a Bill of Costs within ten days of the entry of this judgment, re: 528 Jury Trial - Completed, by Clerk on 5/4/10. (gms,) (Entered: 05/04/2010)
05/04/2010	535	AMENDED JUDGMENT by Clerk, Approved as to form by Judge Miller. Judgment shall enter for the Defendant, City of Colorado Springs and against the Plaintiff, Ms. Karyn S. Palgut. Defendant, is awarded its allowable costs from the plaintiff, on the filing of a Bill of Costs within 14 days of the entry of this judgment, re: 528 Jury Trial - Completed and 534 Clerk's Judgment, by Clerk on 5/4/10. (gms,) (Entered: 05/04/2010)
05/18/2010	536	Proposed Bill of Costs by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit Supporting Documentation)(Bain, William) (Entered: 05/18/2010)
05/19/2010	537	Exhibits in Support of 536 Proposed Bill of Costs <i>Attachment Amended</i> by Defendant Colorado Springs, City of. (Bain, William) (Entered: 05/19/2010)
05/21/2010	538	CERTIFICATE OF COMPLIANCE <i>with D.C.COLO.L.CivR 54.1</i> re 536 Proposed Bill of Costs by Defendant Colorado Springs, City of. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Bain, William) (Entered: 05/21/2010)
06/01/2010	539	Costs Taxed in amount of \$ 3,135.80 against Plaintiff Karyn S. Palgut. (ebs,) (Entered: 06/02/2010)

09/02/2010	540	NOTICE of Entry of Appearance by Elliot David Fladen on behalf of Colorado Springs, City of (Fladen, Elliot) (Entered: 09/02/2010)
10/21/2010	541	SATISFACTION OF JUDGMENT re 535 Clerk's Judgment, entered In favor of Colorado Springs, City of Against Karyn S. Palgut by Defendant Colorado Springs, City of. (Fladen, Elliot) (Entered: 10/21/2010)
05/22/2012	542	Partial TRANSCRIPT of Excerpt, Hearing on Motions in Limine, Neuberg Testimony held on 4-12-10 before Judge Miller. Pages: 1-32. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.</P> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/23/2012. (Spitler, Kara) (Entered: 05/22/2012)
05/22/2012	543	Partial TRANSCRIPT of Excerpt, Trial to Jury, Day 4, Neuberg Testimony held on 4-15-10 before Judge Miller. Pages: 1-85. <P> NOTICE - REDACTION OF TRANSCRIPTS: Within seven calendar days of this filing, each party shall inform the Court, by filing a Notice of Intent to Redact, of the party's intent to redact personal identifiers from the electronic transcript of the court proceeding. If a Notice of Intent to Redact is not filed within the allotted time, this transcript will be made electronically available after 90 days. Please see the Notice of Electronic Availability of Transcripts document at www.cod.uscourts.gov.</P> Transcript may only be viewed at the court public terminal or purchased through the Court Reporter/Transcriber prior to the 90 day deadline for electronic posting on PACER. Release of Transcript Restriction set for 8/23/2012. (Spitler, Kara) (Entered: 05/22/2012)

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